

PUBLICATIONS

—OF—

THE Mississippi Historical Society

EDITED BY
FRANKLIN L. RILEY
SECRETARY

(REPRINTED 1919)

By
DUNBAR ROWLAND, LL. D.
Secretary

VOLUME I.

OXFORD, MISSISSIPPI
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Title: Publications of the Mississippi Historical Society, Volume 01 (of 14), 1898

Author: Mississippi Historical Society

Editor: Franklin L. Riley
Dunbar Rowland

Release date: June 18, 2013 [eBook #42980]
Most recently updated: October 23, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/42980

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OF THE MISSISSIPPI HISTORICAL SOCIETY, VOLUME 01 (OF 14),

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**PUBLICATIONS
OF THE
MISSISSIPPI HISTORICAL SOCIETY**

VOL. I. JUNE, 1898. No. 1.

MISSISSIPPI'S "BACKWOODS POET."

BY DABNEY LIPSCOMB, A. M.

To awaken greater interest in what, however estimated, Mississippians have accomplished in the field of literature, to provoke research into even its remote and unfrequented corners; and, chiefly, to place more prominently before the people of his much-loved State a poet too little known, is the double purpose of this essay.

The poet needs no introduction and offers no apology on his entrance into the domain of history; for he is no intruder there, entitled indeed to a place of honor in the proudest capitol of that noble realm. Homer precedes Herodotus and makes his record doubly valuable. The poet is in fact the maker in large measure of the history of the world. Through his entrancing and inspiring voice the aspirations of humanity have been elevated, ideals lofty in thought and deed have been constantly upheld, and will to dare and do the utmost in the cause of liberty and righteousness has been imparted in the hour of need. In the poet's verse we read, as nowhere else, the inner throbbing life of man. High or low his ascent of Parnassus, his words have a charm for us, if the Muse has bidden him welcome; and the nearer he is to us the more apt he will be to express our peculiar griefs and joys in his melodious strains.

Hence, it is with pleasure, that the claims of Mississippi's "Backwoods Poet" to our affection and appreciation are now presented. Perhaps he is not the greatest of the thirty or forty that might be named who in our State have as poets achieved more or less local distinction. He modestly disclaimed such honor, and assumed himself the title of "Backwoods Poet" which has been given him. S. Newton Berryhill, of Choctaw (now Webster) county, Mississippi, is his proper name. He was born October 22, 1832, and died Dec. 8, 1887.

In the preface of his poems these significant facts are stated:

"While I was yet an infant, my father with his family settled down in a wilderness, where I grew up with the population, rarely ever going out of the neighborhood for forty years. The old log school house, with a single window and a single door, was my *alma mater*, the green woods was my campus."

Yet what he learned in the log school house and the woods and by subsequent private study would put to shame very many who have enjoyed far better educational advantages; especially, when the further disadvantage under which he labored is considered. Early in life he became the victim of a serious spinal affection, which rendered him a confirmed invalid, unable the remainder of his days to stand upon his feet. Despite all these, to an ordinary man, crushing limitations, he became fairly proficient in Latin, French, German, and music, in addition to a thorough knowledge of the usual high school course in English, science, and mathematics.

To teaching, journalism, and literature he devoted his life. After a long and creditable career as teacher near his country home, during which time most of his poetry was written, he moved, about 1875, to Columbus, Mississippi. In the dingy office of the old *Columbus Democrat*, the writer first saw this unquestionably remarkable man. Cushioned in his wheel chair, before a desk, busy with his pen, Mr. Berryhill, the editor, saw not how closely he was observed, nor the look of pity he might have read in his beholder's face for one so handicapped in the race of life. But as the massive, thinly covered head was raised, and the dauntless, lofty spirit of the man shone from the dark and deep-set eyes; as the almost cheerful expression of his pallid countenance was revealed,—pity gave way to wonder and admiration, which grew yet more with further knowledge of the man and his achievements against odds apparently so overwhelming. How respectfully on bright Sundays when he could venture out, he was lifted in his chair by friends up the double flight of steps to the audience room of the church and rolled down the aisle to the place near the pulpit, sympathetic glances following him the while, is a picture, too, not soon to be forgotten.

During his stay in Columbus he was elected County Treasurer, which office he filled acceptably two years. In 1880 he returned to Webster county, where, as has been stated, he died, Jan. 8, 1887. Little else, for the lack of information, except that he was a Methodist and a Mason, can be said of the

life and character of Mr. Berryhill. What more is given must be gathered from his writings in an inferential way, which for this purpose and for their literary merit, will repay the examination now proposed.

The editorials, sound, progressive, and patriotic, must be laid aside. The rather crude but racy character sketches, Indian legends, and miscellaneous short stories, written in part during his quiet closing years, must, also, more regretfully be left unnoticed for lack of time. His poetry is the work he prized most highly, and by it his place in literature should be determined.

From boyhood, he was irrepressibly poetic. The spirit of the woods and hills early descended on him, giving his eye unwonted keenness in discerning the beauty that surrounded him, and his ear unwonted delicacy in detecting the melody that floated in every breeze. Romantic stories of their better days told him by neighboring friendly Choctaws took deep root in his youthful fancy and bore fruit in his prose and verse.

In 1878 his poems written during the forty years previous were published at Columbus in a volume entitled "Backwoods Poems." Political issues of very serious nature, not altogether settled, were then too absorbing a theme to Mississippians to permit them to pay much heed to poetry, however excellent. Hence, the work received less notice than otherwise it would. But one edition was ever published, and few copies of it can now be found.

What first strikes the reader as he turns the pages of this unpretentious little volume is the variety and uniform excellence of the versification. Under the circumstances, it was natural to suppose that this poet would attempt little else than the rhyming couplet and the ballad form of verse. Instead, stanzas varying greatly in length and rhyme order, with lines from two to six stresses, iambic and often trochaic in movement, usually well sustained, soon make a strong impression that no common poetaster has set the music to these verses.

As to length, not more than half a dozen of the two hundred twenty-six poems in the collection contain more than one hundred lines. The longest and leading poem, called Palila, is a metrical version of a favorite Choctaw legend, numbering one thousand tetrameter lines. This pathetic story of an Indian maiden and her ill-starred gallant lover and the upshooting by the medicine spring of the little flower the pale-face calls the lady's slipper, but known to red men as Palila's Moccasin, is told with dramatic effect, and has

the atmosphere of freedom and wildness befitting a tale so weird and sad. Bare mention of two or three other rather lengthy poems, such as "A Heart's History," and "The Vision of Blood," will be made, principally to call attention to the excellence of the blank verse in which they are written; its ease, accuracy, and vigor are readily perceived.

The shorter poems may be conveniently classed as anacreontic, humorous, patriotic, descriptive, and personal. Many of them, as the author admits, especially those of his youth, are crude and imperfect, but he explains in a personally suggestive way that he could not cast out these poor children of his brain on account of their deformity, and craves indulgence where approval or applause must be withheld.

The poems of love and humor have little value except for the light they throw on the poet, who, though deprived of nearly all the heart holds dear in life, could yet fully sympathize with youth in its joys and smile genially even on its follies. A few stanzas from two or three poems in his lighter vein, of which there are quite a number, will be sufficient to indicate the sunny side of the poet's nature. First, a little rustic picture:

BETTIE BELL.

How sweet she looked in home spun frock,
With arms and shoulders bare,
And yellow flowers and scarlet leaves
Twined in her auburn hair;
With saucy lips and fingers plump
Stained by the berries wild;
And hazel eyes whose drooping lids
Half hid them when she smiled.

I could have kissed the little tracks
Her bare brown feet had made;
There was no huckleberry pond
Too deep for me to wade—
There was no rough persimmon tree
Too tall for me to scale—
If Bettie Bell was standing by
With the little wooden pail.

Another with a touch of humor will next be given:

MR. BROWN;
OR CIRCUMSTANCES ALTER CASES.

"O tell me Mary have you seen
That ugly Mr. Brown
With pumpkin head and brimstone hair,
And manners like a clown!
What could have made young Charley Smith
Bring such a gawk to town?

He has no breeding, I am sure—
He stares at ladies so
With those great dumpling eyes of his—
And I would like to know
How Bettie Jones can condescend
To take him for a beau!"

Quoth Mary, "What you say is true;
He's awkward and he's plain;
But then, you know, he's rich;
And wealth with some will gain."—
"Indeed, I never heard of that,"
Said pretty Martha Jane.

"I only got a glance at him
At Mrs. Jenkins' ball;
And on acquaintance he may not look
So ugly after all.
I wonder if young Charley Smith
Will ask his friend to call!"

Even in parody the isolated sufferer would at times seek self-forgetfulness or diversion. A short one is here inserted from the author's scrap-book. To a Southerner, the faithfulness and humor of the selection will be manifest:

A SKETCH.

The darkey sat on his stubborn mule,
Day through the west had fled,

And the silver light of the rising moon
Shone on his bare bald head.

Firm as an Alp the old mule stood—
An Alp with its crest of snow—
The darkey thumped, the darkey kicked,
And swore he'd make it go.

The night wore on, it would not budge
Till it had changed its mind;
And the darkey cursed, the darkey swore
Till he was hoarse and blind.

At last he saw its big ears twitch,
Its eyes cast back the while;
And felt the skin beneath him writhe
Like a serpent in its coil.

Then came a yell of wild despair;
The man—oh! where was he?—
When the clouds unveil the hidden moon
I think perhaps we'll see.

In the patriotic poems, chiefly war lyrics, notes louder, harsher, and even bitter in their tone as the cause seems lost, strike clear and full upon the ear, disclosing their author as one of the "fire eaters" of the South, loth to accept the verdict of the sword and submit to reconstruction. In this gathering, apart from their connection with the author, two or three of these poems no doubt will be interesting for their historical value alone. "*The Storm*," written April 15, 1861, expresses in borrowed form but with graphic power the terrible suspense that then prevailed:

THE STORM.
OLD DOMINION.

Watchman, tell us of the night,
For our hearts with grief are bowed;

Breaks no gleam of silver light
Through the dark and angry cloud?
WATCHMAN.

Blacker grows the midnight sky;
Lightnings leap and thunders roll;
Hist! the tempest draweth nigh,—
Christ, have mercy on our souls!
OLD DOMINION.

Search the northern sky with care,
Whence the tempest issued forth,
Are the clouds not breaking there?
Watchman, tell us of the North.
WATCHMAN.

I have searched the Northern skies,
Where the wicked storm-fiends dwell;
From their seething caldrons rise
Clouds as black as smoke from hell.
OLD DOMINION.

Turn you to the East, my friend;
Can you see no rosy streak?
Will the long night never end?
Day—oh will it never break?
WATCHMAN.

I have looked; no ray of light
Streaks the black horizon there:
But the angry face of night
Doth its fiercest aspect wear.
OLD DOMINION.

Raven, cease your dismal croak,
Cease to tear my bleeding breast;
Turn you where the clouds are broke;
Watchman, tell us of the West.
WATCHMAN.

Black and full of evils dire,
Stands the cloud which hides the West;
Storm-lights tinge its base with fire,
Lightnings play upon its crest.

OLD DOMINION.

Watchman, scan the Southern sky:
Is there not one star in sight?
Search with anxious, careful eye—
Watchman, tell us of the night.

WATCHMAN.

Praise the Lord! there yet is hope!
Cease your groans and dry your tears:
Lo! the sable cloud doth ope
And the clear gray sky appears.
Wider grows the field of light
As the rent clouds backward fly,
And a starry circle bright
Sivers all the Southern sky.

"The Vision of Blood" written in 1864 is too long, and even if not, too lurid in its imagery to justify reproduction now. Instead let us take this glimpse into those days of death and disaster to the South:

TIDINGS FROM THE BATTLE FIELD.

"Fresh tidings from the battle field!"

A widowed mother stands,
And lifts the glasses from her eyes
With trembling withered hands.

"Fresh tidings from the battle field!"

"Your only son is slain;
He fell with victory on his lips,
And a bullet in his brain."

The stricken mother staggers back,
And falls upon the floor:
And the wailing shriek of a broken heart
Comes from the cottage door.

"Fresh tidings from the battle field!"

The wife her needle plies,
While in the cradle at her feet
Her sleeping infant lies.

"Fresh tidings from the battle field!"

"Your husband is no more,
But he died as soldiers love to die,
His wounds were all before."
Her work was dropped—"O God" she moans,
And lifts her aching eyes;
The orphaned babe in the cradle wakes,
And joins its mother's cries.

"Fresh tidings from the battle field!"
A maid with pensive eye
Sits musing near the sacred spot
Where she heard his last good-bye.
"Fresh tidings from the battle-field!"
"Your lover's cold in death;
But he breathed the name of her he loved
With his expiring breath."
With hands pressed to her snowy brow,
She strives her grief to hide;
She shrinks from friendly sympathy—
A widow ere a bride.

"Fresh tidings from the battle field!"
O, what a weight of woe
Is borne upon their blood-stained wings
As onward still they go!
War! eldest child of Death and Hell!
When shall thy horrors cease?
When shall the Gospel usher in
The reign of love and peace?
Speed, speed, the blissful time, O Lord!—
The blessed, happy years—
When plough-shares shall be made of swords,
And pruning hooks of spears!

The lines on Sheridan and Butler express something more than the poet's righteous indignation at deeds by them in which he can somehow see neither virtue nor valor. As indicative of the feelings of the South in the

hour of final defeat and subjugation read "Daughters of Southland" and "My Motherland." One stanza of the first must suffice:

Daughters of Southland, weep no more;
Their glory's priceless gem
Nor peace, nor war can ever mar;
There is no change for them.
Rejoice! for tho the conqueror's hate
Still beats upon our head,
Despite our chains there yet remains
The memory of our dead.

How tender and ardent is the patriotism in these lines:

My motherland! My motherland
Though dust is on thy brow,
And sack-cloth wraps thy beauteous form,
I love thee better now
Than when, arrayed in robes of power,
Thou send'st thy legions forth
To battle with the hosts that poured.
From out the mighty North.

My motherland! my motherland!
Thy bravest and thy best,
Beneath the sod their life-blood stained,
In dreamless slumber rest;
Thrice happy dead! They cannot hear
Thy low, sad wail of woe;
The taunts thy living sons must bear
They are not doomed to know.

My motherland! my motherland!
Their spirits whisper me,
And bid me in thy days of grief
Still closer cling to thee,

And though the hopes we cherished once
With them have found a grave,
I love thee yet, my motherland—
The land they died to save.

Whether he spoke for his section in these disdainful and defiant lines,
descriptive of times just after the war, each may decide for himself:

RE-RECONSTRUCTION.

Aye, heat the iron seven times hot
In the furnace red of hell;
Call to your aid the venomed skill
Of "all the fiends that fell,"
And forge new links for the galling chain
To bind the prostrate South again.

Stir up again your snarling pack
Your jackals black and white,
That tear her lovely form by day,
And gnaw her bones by night—
Your sniveling thieves with carpet bags—
Your sneaking, whining scalawags!

Villains, go on; each blow you strike
To glut your hellish hate,
But welds in one all Southern hearts,
And state unites to state;
And lo, compact our Southland stands—
A nation fashioned by your hands.

But it is in the poems personal and descriptive that we get close to this poet's heart. There will be found what gave most solace to his circumscribed and lonely life. In nature as she was most attractive to him, and in lines to loved ones young and old, plaintive often but never rebellious or morose, the placid, self-restrained, yet inspiring nature of the

man is brought to clearest view. Fervid in his love for beauty, he bowed none the less devoutly at the shrine of duty.

"The Old School House," "The Deserted Home," "Autumn," "The Frost and the Forest," "My Castle," "Lines on the Death of My Father," "My Old Home," and the last poem "Unfinished," are representative of the class that best reflects the poet and the man; and by their pensive beauty perhaps take firmest hold upon the reader. It is difficult to offer satisfactory illustrations without being too lengthy; but these will prove at least suggestive:

AUTUMN.

Let nobler poets tune their lyres to sing
The budding glories of the early spring,—
Its gay sweet-scented flowers and verdant trees
That graceful bend before the western breeze.
Be mine the task to chant in humble rhyme
The lovely autumn of our own bright Southern clime.

No more the sun from the zenith high,
With fiery tongue licks brook and riv'let dry;
But from beyond the equinoctial line—
Where crystal waters lave the golden mine—
Aslant on earth he pours his mellow beams,
Soft as the memories which light old age's dreams.

The following poem can be given entire, as it is short:

THE FROST AND THE FOREST.

The Frost King came in the dead of night—
Came with jewels of silver sheen—
To woo by the spinster Dian's light,
The pride of the South—the Forest Queen.

He wooed till morn, and he went away;
Then I heard the Forest faintly sigh,
And she blushed like a girl on her wedding day,
And her blush grew deeper as time went by.

Alas, for the Forest! the cunning Frost

Her ruin sought, when he came to woo;
She moans all day her glory lost,
And her blush has changed to a death-like hue.

Perhaps Mr. Berryhill's best known poem is one that is personal and yet quite fanciful. It can be found in Miss Clarke's "Songs of the South." Two or three stanzas will be sufficient:

MY CASTLE.

They do not know who sneer at me because I'm poor and
lame,
And round my brow has never twined the laurel wreath of
fame—
They do not know that I possess a castle old and grand,
With many an acre broad attached of fair and fertile land;
With hills and dales, and lakes and streams, and fields of
waving grain,
And snowy flocks, and lowing herds, that browse upon the
plain.
In sooth, it is a good demesne—how would my scorers
stare,
Could they behold the splendors of my castle in the air!

The room in which I am sitting now is smoky, bare and cold,
But I have gorgeous, stately chambers in my palace old.
Rich paintings by the grand old masters hang upon the wall
And marble busts and statues stand around the spacious hall.
A chandelier of silver pure, and golden lamps illumine,
With rosy light, on festal nights the great reception room.
When wisdom, genius, beauty, wit, are all assembled there,
And strains of sweetest music fill my castle in the air.

The banks may break, and stocks may fall, the Croesus of
to-day
May see, to-morrow, all his wealth, like snow, dissolve

away.

And the auctioneer, at panic price, to the highest bidder sell
His marble home in which a king might well be proud to
dwell.

But in my castle in the air, I have a sure estate
No panic with its hydra head can e'er depreciate.
No hard-faced sheriff dares to levy execution there,
For universal law exempts a castle in the air.

Little remains to be said. This singular life, with an estimate of the quality and quantity of its work has been unfolded as faithfully as possible.

With greater interest, the dominant motive of the author, so frankly stated, may now be joined, without comment, to his mournful retrospect of his life work. The first is found in the lines from Mrs. Hemans inscribed on the title page of "Backwoods Poems."

———"I'd leave behind
Something immortal of my heart and mind."

This is his salutatory. In the closing stanza of the last poem "Unfinished," the retrospect is made, and his valedictory delivered thus:

"My canvas is not full; a vacant space
Remains untouched. To fill it were not meet—
I'll leave it so—like all that bears a trace
Of me on earth—Unfinished—incomplete."

To Hayne, Lanier, and Maurice Thompson, S. Newton Berryhill must yield in subtlety of melody and penetrative insight into nature's deeper meanings. Timrod and Ticknor in their war lyrics may, at times, have struck the martial chord with stronger and more dextrous hand; but it may still be justly claimed that the best of the "Backwoods Poems" compare favorably with much or even most of the work of these more famous Southern poets.

If in this paper this claim has been established, its purpose is abundantly fulfilled, and the "Backwoods Poet" in environment and achievement stands out a unique figure in the literature of the State.

MISSISSIPPI AS A FIELD FOR THE STUDENT OF LITERATURE.

BY W. L. WEBER.

Dr. Sam Johnson is sponsor for the stock illustration of history reduced to its lowest terms. His story is with reference to the Natural History of Iceland by the Danish Historian Horrebow. The learned Dane undertook to write an exhaustive account of the wintry island. Chapter Seventy-two of this history, so the story goes, had as its title the attractive phrase, Concerning Snakes. The Chapter itself, long famous for telling the whole truth in the fewest words, consists of one sentence: There are no snakes to be met with throughout the whole island.

With similar parsimony of words, if we are willing to adopt one of the almost universally accepted definitions in which beauty and permanence and universality are made the final tests of literature—if we are willing to accept so narrow a definition we may find ourselves able to write the history of Mississippi literature in one sentence. Such a history would be—in the brutal directness of Horrebow's phrase: There is no literature to be met with throughout the whole State.

But as for me, this humiliating conclusion is not to be agreed to, for I decline to be shackled by so narrow limitations. Literature has a wider meaning than is given to it in this esthetic definition, a definition which must exclude everything written by Mississippi authors. There ought to be general agreement to the commonplace that literature is life embodied in the pages of books. "Good literature is" therefore "an open door into the life and mode of thought of the time and place where it originated." On this side of our work the departments of literature and of history are one and inseparable. There can be no genuine history of a people which fails to take into account the distinctly intellectual life of that people. The student of policies and of institutions must needs seek the help of him whose care is to trace literary currents and together they must labor by painstaking study of the writings of Mississippians to conjure up by some verbal necromancy,

the literary genius and spirit of the people of the State. We are not going too far, then, in asserting that all written monuments that in any way reflect and set forth the intellectual life of the people are rightly to be enumerated in the lists of Mississippi literature.

But even after we have insisted on this wider definition of literature, Mississippi has few grounds for boasting. The list of Mississippi books is not long; the average quality is not high. Of pure literature, of the real literature of power, we have contributed scarcely fifty pages to the world's store. We may deceive ourselves and gratify our state pride by wild claims, but after the joy of self-glorification is over we shall be forced to the conclusion that our place in literary history is an humble one. Some part of this result is doubtless due to sham admiration of our literature. We have delighted to praise our books without stint; we have preferred to buy the books of others. To praise is easy; to read is weariness to the flesh. We have, therefore, praised extravagantly; we have read vicariously. It does not come within the range of this paper to suggest why Mississippi has contributed so much more to politics than to literature. Preference for the hustlings and the madding crowds rather than for the desk and its quiet enthusiasms must be accepted as a fact, let him who will account for it. Nor is this the place to argue that a local literature is a contradiction in terms. Our desire is to see the day when Mississippi shall have writers whom succeeding generations will delight to number among those who have contributed to the world's best thoughts, adequately expressed.

My purpose is not to tickle your ears with a panegyric on what Mississippi has done in the field of literature, not to apologize for her confessed shortcomings, not to prophesy excellence as the certain outcome of the future. My purpose is a humbler one. I take for granted that there are in the state young men with literary aspirations. I wish to suggest to such, some lines of work that need to be done, and to be done at once. It is my hope that such work will be valuable in furnishing a store house of literary material and that the labor of accumulation will be admirable discipline preparing the students for creative effort—if haply they be so endowed as to be able to do work for all time.

To make my suggestions altogether practical, I shall draw up a list of channels in which the student of Mississippi literature may profitably direct his activity. (It may not be amiss just here to call your attention to the fact

that by my subject-title I am restricted to that aspect of our subject which has to do with the interests of the students and have, therefore, no direct connection with the immediate interests of the author.) Turning our attention to student-work, I may as well express my opinion that we have no noble specimens of literary art to which the student may turn to make critical examination of the method and purposes of literary interpretation. We have little that may claim place even in the ranks of third and fourth rate productions. With the single exception of the poems of Irvin Russell, Mississippi has produced nothing which literary men have been willing to accord a place in the literature of America.

It is perhaps too soon to prophesy whether his place is a permanent one or not. It is, however, evident that the Mississippi student must look for a humbler class of work than that of constructive criticism. Having little material to which the rules of esthetic criticism may be profitably applied, and having no desire to be enrolled in the large and ignoble army of critics, our student must look for a less inviting field of activity. Yet he has the consolation of knowing that even journeyman work if it be well done is altogether worth doing. And even if we are not yet at a stage in our literary history when we can afford to claim the right to subject our material to the tests reserved for noble literary models, we may wisely believe that ours is the work which will prepare the ground from which will spring up a harvest every way worthy of our beautiful fields of our eventful history, of our noble people.

Having agreed as to what class of work may come under a professedly literary review of Mississippi writings, we are minded to take stock of our property. Being under the conviction that everything which sets forth Mississippi life is worthy of consideration, we may conclude that every Mississippi book has a right to be included in the subject matter worthy of the attention of a Mississippi student. Justin Winsor learned by experience that every printed document was worthy of preservation in the great library of Harvard University and we shall find that no contribution of a Mississippi pen is unworthy of our care. I may call your attention to the fact that much writing of real merit is of a fugitive character and appears only to sink back into the oblivion of musty files of country newspapers.

The first work, then, to which I should assign my student is the compilation of a bibliography of Mississippi literature. So far as I know there is no man

who knows how many books have been written by our own authors. A confessedly incomplete list of my own compilation reveals the name of many a work the Mississippian of average intelligence has never so much as heard of. As has already been suggested, I should not confine the list to an enumeration of bound volumes. Every pamphlet a copy of which may be had, or the actual appearing of which is assured, ought to be listed in the Bibliography of Mississippi Literature. At the very outset of our labors, we are met with a problem that meets the student of the literature of every section of the United States. What constitutes a Mississippi book? Are we to proceed on the doctrine that once a Mississippian, always a Mississippian and include in our enumeration the books of every writer that has been in the State? If so, Jas. A. Harrison, a native born Mississippian, a Virginian by adoption, is to adorn our lists. Must we add all books written on Mississippi soil? If so, we are to include many volumes of Maurice Thompson, who spends his winters on the Gulf Coast, and dates his prefaces from Bay St. Louis. Are we to include works written by authors then legally residents of the state, afterwards citizens of other states? If so, Professors Bledsoe and Hutson are Mississippi authors. These questions must be settled before we can have an authoritative bibliography. It has been my custom to enumerate as ours, all books written by an author resident in Mississippi at the time of the writing of the volume.

After having completed the bibliography, the student would naturally turn his attention to the gathering of biographical facts connected with our own writers. Most of those who have made books have acquaintances still living. From them we must get the facts that will enable us to understand what has been written. The man wrote himself into his book, to be sure, and the facts of his life are the very best commentary on the book itself. It is a shame that we have neglected our own writers and that it was left to Professor Baskervill, a Tennessean, to give us the only adequate appreciation of Irwin Russell. But much is left to be done. The student who accumulates the recollections of Russell's friends and preserves them in the archives of the Historical Society will be doing a work worth while doing, a work which will grow in value as the years go by. This field of biographical study is practically untilled, tho we may cite as examples of how the work is to be done—Professor Baskervill's paper just mentioned, Bishop Galloway's study of Henry T. Lewis and Professor Lipscomb's account of Berryhill, the Poet.

After my student had acquired a surer touch in his progress from compiler of book-lists to painter of life-picture, he would already be prepared in literary appreciativeness to see and point out the fine poetry fossilized in the Indian names remaining in our state. It is worth while to make lists of all our Indian geographical names, to discover the meaning of the names so collected and if possible to find out the circumstances that led to these names being given to creek, to river, to hamlet, county, as may be. In some names there is, to be sure, little poetry. The fact that Shubuta means "sour meal" does not serve as a trumpet call to the writing of a sonnet; but where there is a lack of poetry the historical fact of name-origin still remains. Why may not some Mississippi Lanier sing into fame our rivers, as the Georgia Chattahoochee has been immortalized by its own poet?

Connected with Indian names the investigator will find Indian legends. A rich mine is sure to open before a diligent worker. The fact that there are different versions of the same legend makes the material all the more valuable as a field of study. The student of ethnography as well as the student of literature finds the history of the Biloxi Indians full of interest. There is poetry even in the naming of the legend of the singing waves of the Pascagoula. There are many and complicated stories connected with the driving of the Natchez Indians from their ancestral seats. Every year makes the collecting of these legends more and more difficult. The patriotic Mississippi student will see to it that they are not lost, but are gathered into the store house for use in days to come.

Joel Chandler Harris has done a wonderful work for Georgia and the Atlantic Coast in the collection of Lore. It cannot be that Uncle Remus had no kinsmen in Mississippi. Yet no one has sought to preserve these Mississippi versions of negro folk tales. It will be remarkable if these tales have not been influenced by Indian admixtures. No student has investigated the subject to find out whether Mississippi has its distinct group of Brer Rabbit stories and whether the distinctive quality of our group is due to contact with Indian legends. Surely nobody will suggest that the work is not worth while doing. With the disappearance of the Indian and the complete conventionalizing of the negro, the opportunity will have passed away.

Not less valuable to the collector of material for the use of the future maker of Mississippi literature is the full account of the doings of famous Mississippi outlaws. It may not be too soon to investigate the deeds of

Murrell and his gang. If the story of his exploits is to become literary property it must be learned before all his contemporaries have passed off the stage of life. It is not too much to expect that the William Gilmore Simms which Mississippi will some day produce may find in the doings of Murrell material for a story that may compare with some of the wildest exploits described by the South Carolina writer. May he who is to portray the early life of our State be not too slow in the coming.

Who knows but that the Mississippi literary man whom we confidently expect and to whom we await to do honor—who knows but that he may belong to the school of Cable and of Murfree and may therefore wish to write in dialect. If the student have some philological training he may wisely prepare for the writer's coming by collection of word lists—of words heard in Mississippi but words that have no literary standing—words which are for the most part confined to the use of the illiterate. Dr. Shands has already collected a list along this line in his dissertation entitled *Some Peculiarities of Speech in Mississippi*. I am sure he is mistaken in thinking that any of his words are peculiar to Mississippi, but nevertheless his list is valuable as enumerating expressions that are to be heard in our state—words which he who tries to reproduce the speech of Mississippi illiterates may not be afraid to use.

The student of our literature may wisely include in the range of his studies all references to Mississippi to be found in the literature of other sections. Not only such references as those but all accounts of Mississippi in books of travel have a rightful place in the collections of him who would gather together the raw material from which literature may some day be woven.

To the writer of reminiscences the literary student looks with hopeful eye. From such an one may be had biographical data, personal traits, literary anecdotes—in fact all the ana which the literary student of this day delights in. The humble collector of this material may not win much of fame for self—except so far as that the humbler work well done does not need to be done again and therefore wins the reward due to honest endeavor—But if he gains no reward he may rejoice in the consciousness that he is making possible the day when Mississippi may stand as a peer with other Southern States, delight to honor her own Lanier, her own Harris, her own Cable, her own Murfree, and her own Allen.

Some one is already asking what's the good of all this? Such matters may perhaps be wisely assigned as school boy tasks but there certainly can be but little value in the material after it has been laboriously collected. The study of literary history supports the contention that the accumulation of the subject matter of literature is in necessary precedence to the creative work of the producer of literature. It will but be in accord with what has taken place in the past, if a student who sets to work along lines I have suggested, who accumulates material, who immerses himself in the history and traditions of his state—it will be but natural, I say, if such an one have his heart set on fire by the enthusiasm engendered by his work and be transformed from a journeyman toiling over his tasks of accumulator into literary wizard who by the incantations of his genius may call forth the spirit of his time. Such work made Walter Scott.

May Mississippi see not another Scott but a literary man who under new conditions and with new material may create for Mississippi a new literature which may have like place in the world's literature with the immortal contributions of the great Scotchman. When that day comes the Mississippian will not have on his shoulders the burden of being an apologist and will not have to compound with his conscience in order to win the name of being patriotic in matters literary.

I have not hesitated thus to rehearse in your hearing matters already well-known to you. If I have but retold an old, old story, I have not deceived myself into thinking that I was telling you new or startling truths. The old story—the well known fact sometimes needs to be reviewed. The fact that it is so well-known, is so self-evident—causes it to be overlooked. I am quite willing to be found fault with for rehearsing at needless length what everybody knows—provided only my rehearsing will lead to these matters being attended to.

SUFFRAGE IN MISSISSIPPI

BY HON. R. H. THOMPSON.

That portion of the present State of Mississippi and that part of Alabama lying between the Mississippi and Chattahoochee rivers, and bounded on the south by the thirty-first parallel of latitude and on the north by a line drawn due east from the mouth of the Yazoo river, was organized into the Mississippi Territory in pursuance of an act of Congress, approved April 7, 1798. Afterwards, in 1804, the country lying south of the State of Tennessee and north of the original Mississippi Territory was added; and in 1812 that portion of the present States of Alabama and Mississippi lying south of the thirty-first degree of latitude was annexed. Mississippi became a state in 1817 and Alabama was then separated from it. This historic statement at the outset will explain why several matters pertaining to suffrage in municipalities not now in the state, are hereafter mentioned.

The organic law of the Territory enacted that the people thereof should "be entitled to and enjoy all and singular the rights, privileges and advantages granted to the people of the territory of the United States, northwest of the river Ohio in and by the ordinance of the thirteenth day of July in the year one thousand seven hundred and eighty-seven, in as full and ample a manner as the same are possessed and enjoyed by the people of the said last mentioned Territory," and thus in our investigation of the subject we are led to examine the ordinance referred to, and which we find in the statutes entitled, "An ordinance for the Territory of the United States Northwest of the River Ohio," to see if it contains any provision relative to suffrage. We find it, and the words of this celebrated ordinance are as follows. "So soon as there shall be five thousand free male inhabitants, of full age, in the district, upon giving proof thereof to the governor, they shall receive authority, with time and place, to elect representatives from their counties or townships, to represent them in the general assembly; provided that for every five hundred free male inhabitants, there shall be one representative, and so on progressively with the number of free male inhabitants, shall the right of representation increase, until the number of representatives shall

amount to twenty-five; after which the number, and proportion of representatives shall be regulated by the legislature; Provided that no person be eligible or qualified to act as a representative, unless he shall have been a citizen of the United States three years, and be a resident in the district, or unless he shall have resided in the district three years, and in either case, shall likewise hold in his own right, in fee simple, two hundred acres of land within the same; Provided also, that a freehold of fifty acres of land in the district, having been a citizen of one of the states, and being resident in the district, or the like freehold, and two years residence in the district shall be necessary to qualify a man as an elector of a representative."

With all due respect to the fathers, nothing in statutory language could be more awkward; the reading of it, however, will serve to remind us that the modern legislator cannot claim originality for his habitual use of the word "provided" as introductory to amendments, and with which to string his ideas together.

The last of the three provisos is necessarily a limitation on the "free male inhabitants, of full age," mentioned at the beginning of the section, since there is no provision in the ordinance for the election of any officers save representatives to the general assembly; all other officers in the scheme of government here provided were appointive. An analysis of the laws of 1787, which evidently must be basis of suffrage in a number of states as well as Mississippi, shows that to entitle a person to vote under our first suffrage law he must have been (1) Free, (2) Male, (3) of full age, presumably 21 years, (4) citizen of the United States and resident of the Territory or a resident for two years in the Territory and (5) Freeholder of fifty acres of land in the district.

While this organic law was in force, of course the territorial legislation was confined, so far as concerns our subject, to municipal suffrage, but I have thought reference thereto not without the scope of this paper, since such legislation, perhaps more than any other, being untrammelled as a general rule by unyielding constitutional restrictions, throws light upon the spirit, temper and thoughts of the people on the subject at the time of the enactment.

Before the amendment of the organic law herein next mentioned I find but one piece of such legislation; by an act approved in 1803 the "freeholders,

landholders and householders" of the city of Natchez were authorized by a majority vote to elect municipal officers, and the act further reads that "for the better understanding of the meaning of the term householder, it is hereby declared that any person who shall be in the occupancy of a room, or rooms, separate and apart to himself, shall be deemed a householder, and entitled to vote at the annual and other meetings of the said city: Provided that such occupancy shall have existed six months next preceding such election." Were this explanatory enactment omitted it would seem that to entitle a person to vote he should have been a freeholder and a landholder and a householder, all three conjointly, but it is apparent that the legislature did not so intend, since it provided by the explanation that if he were a householder alone, he would have been entitled to vote. The explanation, while directed at a definition of a householder, settles by indirection the only doubt arising from the text sought to be explained, but unfortunately the proviso brought with it a greater difficulty than the explanation had removed, and that was whether other householders than those directed to be so deemed, were required to have been such for six months before offering to vote. The phraseology suggests legislative amendments and indicates a difference of opinion as to who should be intrusted to vote; but all seem to have agreed upon permanent residence anchorage to the soil as an essential qualification, the difference being as to rigidity and extent to which it should be carried. The most notable thing about this, the first legislative act of Mississippi conferring the right of suffrage, is that no distinction is made because of age, color, or sex. Whether this were by accident or design, and whether other persons than adult white males really voted thereunder, does not appear.

By an Act of Congress, approved Jan. 9th, 1808, the organic law so far as it related to Mississippi Territory, was amended so as to provide that every free white male person in the Mississippi Territory, above the age of 21 years, having been a citizen of the United States, and resident in the said territory one year next preceding an election of representatives, and who has a legal or equitable title to a tract of land by virtue of any act of Congress, or who may become the purchaser of any tract of land from the United States of the quantity of fifty acres, or who may hold in his own right a town lot of the value of one hundred dollars within the said territory, shall be entitled to vote for representatives to the general assembly of said territory.

The change just made in the suffrage laws of the territory can best be appreciated by the use of parallel columns.

Act of July 13th, 1787.

A person to vote hereunder must be

- (1) Free,
- (2) Male,
- (3) Of the age of twenty-one years.
- (4) A citizen of the United States and a resident of the Territory, or a resident for two years in the Territory, and
- (5) A freeholder of fifty acres of land in the district.

Act of Jan. 9, 1808.

A person to vote hereunder must be

- (1) Free,
- (2) Male,
- (3) Of the age of twenty-one years.
- (4) A citizen of the United States and resident of the territory one year next preceding an election at which he offers to vote,
- (5) The holder of a legal or equitable title to a tract of land, by virtue of any act of Congress, or who may become the purchaser of any tract of land from the United States of the quantity of fifty acres, or who may own a town lot of the value of one hundred dollars within the territory and
- (6) White.

This act of Congress, passed in 1808, first introduced the color line.

In 1811 four municipalities were organized by acts of the territorial legislature, Woodville, Port Gibson, Huntsville and St. Stevens; the latter two are now in Alabama. In the first one named the right to vote was conferred on the freeholders and householders within the town, and in the second the right was conferred on the landowners, freeholders and householders within said town, but in each case the grant was followed by a separate section of the act in these words: "All free male inhabitants, subject to taxation, who shall be in the occupancy of a room or rooms separate and apart to himself, shall be deemed a householder, within the meaning of this act, and shall be entitled to vote at the town elections."

Clearly this section was intended to enlarge the scope of those who were authorized to vote and it could not rightfully be construed as narrowing it.

This being true, the freeholder and householders, other than those mentioned in the quoted section, were empowered to vote without reference to sex and all without regard to age or color. In the charter of Huntsville the suffrage was conferred on "all free white male inhabitants of said town above the age of twenty one years," and in the case of St. Stevens the right to vote was given to "the citizens of said town," but this was amended in 1815 so as to limit the right to "landholders, freeholders and householders."

In January, 1814, the territorial legislature treated the town of Mobile as an existing municipality, the section of the country surrounding it, acquired from West Florida, was added to the territory in 1812, and restricted suffrage to the "landholders, freeholders and householders within the town," and followed this with a section in the very language of the one quoted above from the charters of Woodville and Port Gibson, but this was amended in 1816 so as to limit suffrage as written in the following section, viz: "No person shall vote at any election for president and commissioners, assessor and collector for the said town, unless he be twenty-one years of age, and shall have been a freeholder in said town, or the tenant of a house or separate roof at least six months previous to any election and shall have paid a county, territorial or corporation tax, nor unless he be a citizen of the United States, or shall have resided within that part of West Florida now in the possession of the United States, at the time of the change of government in that province." The next legislation pertinent was the act of Congress, approved April 25th, 1814, amending the organic law of the territory. This provided "Each and every free white male person, being a citizen of the United States, who shall have attained the age of twenty-one years, and who shall also have resided one year in said territory previous to any general election, and be at the time of any such election a resident thereof, shall be entitled to vote for members of the house of representatives, and a delegate to Congress for the territory aforesaid." The only effect of this act was to dispense with the property qualification previously prescribed and to substitute in its place the payment of a county or territorial tax. In 1815 an election was authorized for the purpose of locating the county seat of Jackson County by act providing simply that such persons as were authorized to vote for representatives might cast their ballots thereat, but in

1816 a like act for Adams County was passed providing "every free male white person, being a citizen of the county of Adams who shall have arrived at the age of twenty-one years and resided in the said county twelve months previous to the said election, shall be admitted to vote thereat and none other." This brings us to the end of territorial legislation and from it we learn that ownership of or anchorage to the soil was a prominent conception of the times; all else as a necessary qualification for voting, even age, color and sex, seems to have been subordinate, or accidental or exceptional. There was certainly no prejudice then in the good old days because of color; the color idea came from without, from Congress.

UNDER THE FIRST CONSTITUTION.

The constitution under which Mississippi came into the Union as a state was adopted on the 15th August, 1817, and by the first section of Article three thereof, the following provision is made: "Every free white male person of the age of twenty-one years or upwards, who shall be a citizen of the United States and shall have resided in this state one year, next preceding an election, and the last six months within the county, city or town in which he offers to vote and shall be enrolled in the militia thereof except exempted by law from military service; or having the aforesaid qualifications of citizenship and residence, shall have paid a state or county tax, shall be deemed a qualified elector; but no elector shall be entitled to vote, except in the county, city or town (entitled to separate representation) in which he may reside at the time of election."

An analysis of this section shows that in order for a person to be a qualified state and county voter thereunder he must have been,

- (1) Free,
- (2) White,
- (3) Male,
- (4) Twenty-one years of age or upward,
- (5) A citizen of the United States,
- (6) A resident of the state for at least one year,
- (7) A resident of the county, city or town at least six months,
- (8) Enrolled in the militia unless exempt therefrom, or he

must have had the "aforesaid qualifications of citizenship and residence" and have paid a state or county tax.

What our forefathers meant by alternate qualifications is hard at this day to find out. A literal construction would have authorized a free white male person having the qualifications of citizenship and residence to have voted irrespective of age, but there is no record of infants having exercised the right, nor is there in our books a judicial interpretation of the constitutional provision. It is notable, too, in respect to this section of the fundamental law that crimes did not disfranchise under the terms of the constitution itself and that the murderer, the thief *et id omne genus* are relegated to the legislature so far as voting was concerned by the 5th section of the sixth article which provides, "laws shall be made to exclude from office, and from suffrage, those who shall hereafter be convicted of bribery, perjury, forgery or other high crimes or misdemeanors." We find, however, that the legislature in 1822 undertook to perform its duty in this regard by providing that "no person shall vote at any election whatever in this state who shall have been convicted by the verdict of a jury, and the final judgment or sentence of a court of competent jurisdiction, of bribery, perjury, forgery, or other high crime or misdemeanor, unless the person so convicted shall receive a full pardon for such offense."

On the subject of pardons and its effect on the right of suffrage it may be stated here that the doctrine in this state until the adoption of the constitution of 1890 was in favor of the restoration of the right to vote; the constitution just named having made provision for a legislative restoration of the right to vote leaves the matter now an open question as concerns executive pardons.

It is worthy of note that by legislative act, approved February 10th, 1821, elections in this state were held *viva voce*, but this act remained in force only until June 13th, 1822, the date of the act repealing it, since which time they have been by ballot; since 1869 the constitutions have required them to be so. In truth there is no record of an election held *viva voce* under the law of 1821, though the election held on the 1st Monday of August, 1821, under Sec. 6, Art. 3 of the first constitution must have been so held. Of course the laws passed under the constitution of 1817 on the subject of state and county elections conformed their provisions, defining who should have the

right of franchise to the terms fundamental law on the subject and, as we have seen, the legislature excluded criminals from the right to vote, but the lawmakers of that day by no means confined themselves to the constitutional qualifications when they came to prescribe who should be entitled to vote in municipal elections; for instance, we see that "citizens of the town" were made voters in Shieldsborough (Now Bay St. Louis) in 1818, in Greenville (Jefferson county) in 1819, and in Holmesville in 1820; and "citizens of one month's residence" were allowed to vote on the subject of the location of the Madison County court house by act approved 1829, and "free white male citizens of the town above the age of twenty-one years" were made voters by act incorporating Pearlinton, passed in 1822, and in the same year "free citizens resident in the town" were made voters in Columbus. In 1821 "free white male inhabitants, resident of the town, twenty-one years of age and upwards" were authorized to vote in Monticello, and in 1831 in Warrenton; and in 1824 such residents of the county were authorized to vote on the location of the county seat of Warren County.

By act of 1821 "every free white male person, twenty-one years old or upwards, an inhabitant of the town for six months and who had been assessed and paid a town tax within a year," were allowed to vote in municipal election at Port Gibson, and so too were the owners of land in that town, if the land had been assessed and taxes paid on it, whether the owner resided in the corporate limits or elsewhere; and I am advised the law of that town so remained until after the war; the idea has been adopted by several municipalities of the state in later days. By the early charters of Vicksburg, approved 1825, and Rodney, approved 1828, suffrage was conferred on "landholders, householders, freeholders and such as shall have paid a town tax, being inhabitants and residents for three months in the town."

In 1830 "freeholders and householders" were made voters in Shieldsborough (now Bay St. Louis) and Raymond, and in 1825 "freeholders and householders," whether resident or not, were given the right to vote in the town of Washington, and in 1831 the right to elect a constable was given "actual citizens of Vicksburg, over twenty-one years of age," and in 1830 the "freeholders and householders" of the town of Washington were required to be males in order to vote after that date, and

the only qualification of voters in the town of Liberty, according to the act of 1819, were that they should be "free white males, resident citizens of the town," and this is true under the first charter of Warrenton, approved in 1820. In all these instances the constitution of 1817 was not regarded as establishing a rule to be applied to municipal suffrage. By several acts passed while this constitution was operative the constitutional rule was, however, adopted in defining who should vote in municipal elections. Thus in 1821, in respect to the town of Washington the language is "persons entitled to vote for members of the general assembly," and the same language is used in the charter of Clinton, passed in 1830, and to the same language is added the words, "and who shall have resided in the town three months" in the charters of Meadville and Brandon passed in 1830 and 1831 respectively. In the amendment to the charter of Liberty, passed in 1828, suffrage is limited to "inhabitants of the town under the restrictions prescribed by the constitution of the state," and the same language substantially is to be found in the act incorporating Gallatin approved in 1829.

"The qualified electors" of Jackson county voted on the subject of the location of their court house under the provisions of an act passed in December, 1830. The "free white male inhabitants, residing within the town entitled to vote for members of the general assembly" were made the electors of the city of Jackson by the first act of incorporation passed in 1823, and by legislative grant approved in 1830 incorporating Manchester (now Yazoo City) the "inhabitants entitled to vote according to the constitution and laws of the state" were given the right to participate in municipal elections, and the same language is used in the charter of Athens, approved in the same year.

An analysis of all this will show that under the constitution of 1817 "color" was not a qualification or a disqualification in eight of the towns of the state legislated upon, viz: Shieldsborough (now Bay St. Louis), Greenville (Jefferson County), Holmesville, Columbus, Vicksburg, Rodney, Raymond and Washington. Of course slaves were not freeholders or citizens, but free men of color were frequently freeholders and before the Dred Scott decision were regarded by many as citizens. It will be noted, too, that sex was not made a qualification or a disqualification for voting in seven of the towns whose charters were passed or amended during the period in which the first

state constitution was operative, viz: those, except Washington, just enumerated. There is no evidence, however, that women ever voted in any of these towns, and all that can be learned on the subject leads to the belief that they not only never did but the right seems never to have been claimed for or by them. Free persons of color, however, as I learn, did claim the right in some of these towns and it was generally conceded by those of the white men whose interest was on the side of the claimant's political preference, but was generally denied by the opposition, and it is doubtful if a negro ever voted in any of them until after the war. On the whole it is not so clear but that the failure to exclude women and free persons of color in the early legislation on the subject of voting in municipalities was but the result of legislative awkwardness and a want of exactness in statutory exclusion and inclusion.

UNDER THE CONSTITUTION OF 1832.

The exact period in Mississippi legal history extends from 1832 to 1869, and embraces the period during which the constitution adopted in 1832 remained in force. This, the second state constitution, was adopted October 26, 1832; its provisions on the subject of suffrage are as follows: "Every free white male person of the age of twenty-one years or upwards, who shall be a citizen of the United States, and shall have resided in this state one year next preceding an election, and the last four months within the county, city or town in which he offers to vote, shall be deemed a qualified elector." * * * * * "Every person shall be disqualified from holding an office or place of honor or profit under the authority of this state, who shall be convicted of having given or offered any bribe to procure his election. Laws shall be made to exclude from office and from suffrage those who shall hereafter be convicted of bribery, perjury, forgery, or other high crimes or misdemeanors." * * The second of the sections above quoted was acted upon by the law-making power March 2, 1833, and the following piece of legislation then became operative:

"No person shall vote at any election whatever in this state, who shall have been convicted by the verdict of a jury and the final judgment of a court of competent jurisdiction, of bribery, perjury, forgery, or other high crimes or

misdemeanors, unless the person so convicted shall have received a full pardon for such offense."

It will be noted that the conviction must have been by the verdict of a jury and the judgment of the court both conjunctively. What was the effect if the criminal plead guilty does not seem to have been considered. Of course the general legislation of the state on the subject of state and county elections, conformed to the constitution, and we are again led to examine the acts incorporating municipalities within the period, and providing who should be voters therein, in order to obtain light on the thought of the times relative to our subject.

A great many cities and towns were incorporated during this period; in a large majority of charters it was simply provided that the "qualified voters" should exercise the right of suffrage, thus recognizing the constitutional rule. In many instances additional qualifications to those named in the constitution were imposed, thus, residence for a specified time within the corporate limits was required in 1833 for Columbus, Amsterdam, Manchester (now Yazoo City), Jackson, Sartartia, Liberty, Woodville, and in 1836 for Plymouth. But by no means did the legislatures of the period conceive that they were bound to require all the constitutional qualifications as essential for municipal suffrage. A favorite idea was to authorize "every free white male inhabitant of the town" who had resided therein for a specified time, to vote in municipal elections. This was the case in Raymond, by act passed in 1833; Salem, Starkville and Sharon, 1837; Cotton Gin Port, Farmington and Philadelphia, 1838; Cooksville and Emory in 1839; Hernando, 1840; Gainesville, 1846; Shongole and Camargo, 1850; Sarepta, Hermans, Eastport and Benela, 1852; Columbus and Aberdeen, 1854 (in the latter, however, non-resident freeholders were allowed to vote by the act); Bonner, 1860; Wesson, Beauregard, Hickory and Hazlehurst, 1865; Lodi, Batesville and Sardis, 1866; Crystal Springs and Winona, 1867. In addition to the ordinary qualifications the payment of a town tax was required for Grand Gulf, 1833; Vicksburg, 1833 and 1839; Rodney, 1844; Yazoo City, 1846; Natchez, 1865. During this period, too, a few municipal charters pursued the language which was so frequently used at an earlier day—"freeholders, landowners and householders." This was the case in the acts for Shieldsborough (now Bay St. Louis), 1838 and 1850; Pass Christian and Biloxi, 1838, and Rodney, 1844. In a few instances every adult resident

person was allowed to vote, without reference to race, color, sex or anything else if the laws were administered as they are written. This was the case in Macon, 1836; Paulding, 1837, and Raleigh, 1838, and in Brandon, by act of 1833, resident persons were not excluded by law because of infancy. For liberality of sentiment on the subject of universal suffrage, Brandon's charter of 1833 is without an equal, but whether this liberality of expression proceeded from a liberality of feeling or from ignorance in the forms of expression doth not appear. Registration of voters was first required in this state by act passed in 1839, and it applied to municipal elections at Vicksburg only; in 1861 a similar provision was enacted for Canton, and in 1865 for Natchez. Of late years a municipal registration is quite common, as we shall see hereafter.

UNDER THE CONSTITUTION OF 1869

By the second section of article seventh, constitution of 1869, the following qualifications of voters were prescribed; in order to be a voter a person must have been,

1. Male,
2. Inhabitant of the state; idiots, insane persons and Indians not taxed excepted,
3. Citizen of the United States, or naturalized,
4. Twenty-one years old or upwards,
5. Resident of the state six months and in county one month,
6. Duly registered.

And by section two, article twelfth thereof, the legislature was required to pass laws to exclude from suffrage "those who shall hereafter be convicted of bribery, perjury, forgery or other high crime or misdemeanor."

The public laws of the state, on the subject of state and county elections, of course conformed to the constitutional provisions; the section thereof found in the code of 1871 on the subject of criminals excluded from the right to register and vote "persons convicted of bribery, perjury, forgery or infamous crime;" that of 1880 denied suffrage to persons convicted of bribery, perjury, forgery, grand larceny or any felony.

Under this constitution (1869) of course the negroes were voters. Much has been said of late years to the effect that the grant of the right to vote on the negroes by the fifteenth amendment to the constitution of the United States was a mistake; perhaps the adoption of that amendment was an error in statecraft; certainly it proved a party mistake to the Republican party. But every thoughtful and candid man will doubt the proposition that the grant of suffrage to the negro was a mistake when viewed from the standpoint of the negro's welfare. Would his rights as a citizen have been as soon respected had he remained deprived of political power? Of course this is a question that can never be settled. We can only speculate upon it.

The provisions of this constitution, like that of the preceding ones, were construed by the legislature as applying only to state and county elections; hence we find that in municipal matters the provisions of the acts of the legislature passed under it defining who should vote in city, town and village elections are variant. It is sufficient to extract from the numerous municipal charters any governing principle. It is apparent, however, that the tendency was, perhaps from convenience of expression, to adopt the constitutional rule, simply adding that the voter should be a resident of the municipality. In a few instances persons having "permanent business" in the town were permitted to vote at municipal elections even though their citizenship and residence were elsewhere.

This was the case in Bolton, 1871; Quitman, 1880; Laurel, 1886; Scooba, 1886; and non-resident freeholders of the town were permitted to vote in Senatobia in 1882 and Tunica, 1888.

In a majority of cases the provision was that the voter should be a qualified elector of the state, or state and county, and that he should have resided within the municipal limits a specified time. This time varied greatly, from ten days, the shortest, to two years. Of the various acts of legislation on this subject I find thirteen in which the length of residence was required to be only ten days; one in which the time is fifteen days; eight fixing twenty days; forty-five prescribing one month; nine fixing two months; fifteen naming three months; nine prescribing four months; one fixing five months; twenty-one naming six months; three fixing one year, and four prescribing two years. The municipalities in which one year's residence was required are Pass Christian (a seashore resort), the purpose evidently being to exclude summer visitors, 1882; Rosedale, 1890; and Durant, 1890. Those in

which two years' residence was prescribed are Eureka Springs, 1880; Seven Pines, 1882; Pass Christian, 1890; and Jackson, 1890. The principal purpose in each, except the summer resort, was to exclude the transient negro voter.

During this period it was not unusual for the legislature to provide that there should be a separate registration of municipal voters. This was the case with Natchez, 1870; Columbus, 1884; Senatobia, 1884; Macon, 1884; Yazoo City, 1884; Ellisville, 1884; Bolton, 1886; Bay St. Louis, 1886; Brooksville, 1886; Fulton, 1886; Pass Christian, 1886; Scooba, 1886; Biloxi, 1888; Terry, 1888; Potts Camp, 1888; Tunica, 1888; Water Valley, 1888; Rosedale, 1890; Clarksdale, 1890; Jackson, 1890; Durant, 1890 Indianola, 1890.

The prepayment of a municipal tax was in several instances made a requisite qualification: This was the case as to a street tax in Brookhaven, 1884; Greenville, 1884 and 1886; Vicksburg, 1886; Vaiden, 1886; and as to street tax and poll tax, Jackson, 1890; Durant, 1890.

In but one instance during the period, 1869 to 1890, do we find the "householders and freeholders" made voters, the case of Greenwood Springs, 1871, though, as we have seen, this was a favorite idea in the early days of the state. In 1882 the spirit of liberality was given full scope by the act providing that "all persons residing within the town limits" should have the right to vote in Columbia; again we will make the suggestion of a skeptic and express doubt whether the girl babies exercised the right.

UNDER THE CONSTITUTION OF 1890.

The provisions of the new constitution of Mississippi on the subject of suffrage are as follows:

ARTICLE 12. FRANCHISE.

Section 240. All elections by the people shall be by ballot.

Section 241. Every male inhabitant of this state, except idiots, insane persons, and Indians not taxed, who is a citizen of the United States, twenty-one years old and upwards, who has resided in this state two years, and one year in the election district, or in the incorporated city

or town in which he offers to vote, and who is duly registered as provided in this article, and who has never been convicted of bribery, burglary, theft, arson, obtaining money or goods under false pretenses, perjury, forgery, embezzlement, or bigamy, and who has paid, on or before the first of February of the year in which he shall offer to vote, all taxes which may have been legally required of him, and which he has had an opportunity of paying according to law for the two preceding years, and who shall produce to the officers holding the election satisfactory evidence that he has paid said taxes, is declared to be a qualified elector; but any minister of the gospel in charge of an organized church shall be entitled to vote after six months' residence in the election district, if otherwise qualified.

Section 244. On and after the first day of January, A. D. 1892, every elector shall, in addition to the foregoing qualifications, be able to read any section of the constitution of this state; or he shall be able to understand the same when read to him, or give a reasonable interpretation thereof. A new registration shall be made before the next ensuing election after January the first, A. D. 1892.

The qualifications at the present time, therefore, of an elector are:

1. Male,
2. Inhabitant of the state, excluding idiots, insane persons and Indians not taxed,
3. Citizen of the United States,
4. Twenty-one years old or upwards,
5. Resident of the state for two years,
6. Resident for one year in the election district, or city or town, except ministers of the gospel who may vote on six months' residence,
7. Duly registered,
8. Never convicted of bribery and other enumerated crimes,
9. Has paid two years' taxes,
10. Able to read any section of the constitution of the state; or able to understand the same when read to him, or give a reasonable interpretation thereof.

It will be noted that these constitutional qualifications, unlike the provisions of former fundamental laws, are by the section above quoted made to apply to electors in municipal elections; the legislature, however, is authorized to prescribe additional qualifications. And it has prescribed as such additional qualifications, by the section on that subject in the chapter of the new Code on Municipalities, that the voter must have resided within the corporate limits for one year next before he offers to register and he must not be in default for taxes due the municipality for the two preceding years.

Much has been said about this constitution, both for and against it; especially has the "understanding clause," the tenth qualification as enumerated above, been severely criticised. Thus we find in the American Law Review of January-February, 1892, the following: "It is quite apparent that this clause was never intended to be carried out faithfully. It will be so administered as to exclude the negro voters, hardly one of whom will be eligible under it, and so as not to exclude the ignorant white voter. The last qualification, the ability to give a reasonable interpretation of any clause of the constitution of the state, would exclude nearly all the lawyers and judges in the state. In this manner the people of Mississippi endeavor to solve the appalling problem of carrying on civil government with a mass of voters easily corrupted and so stolid and ignorant as not to be able to understand the first principles of their political institutions."

And we find in the Atlantic Monthly, December, 1892, the following statement in reference to it:

"That it may, and probably will, be put into operation so as to preclude the negro from voting, while his equally ignorant white neighbor is allowed the privilege, appears from the fact that the inability to read does not constitute an absolute basis of exclusion; for the inspectors may allow a person to vote who can understand or give a reasonable interpretation of a section of the constitution when read to him. It is apparent that an inspector may very easily reject as unreasonable an interpretation from a colored man, and accept one no whit better from a white man. Such discrimination in practice would be very hard to discover."

And Mr. John F. Dillon, one of the most distinguished of American lawyers, in his address as President of the American Bar Association, at Saratoga, August, 1892, speaking of this section of the Mississippi Constitution of 1890, says:

"It has been supposed that this clause was a concession made in the interest of illiterate whites; but whether this be so or not, a general and indiscriminate requirement that all voters shall be able to read and write is, in my judgment, not contrary to the fundamental principles of American government, but in accordance with the principles on which such government must securely rest, namely, the intelligence and virtue of the people."

I have heard attributed to a distinguished United States Senator, who would have been glad to have come to a different conclusion, that this constitution demonstrated that Anglo-Saxon ingenuity could accomplish anything; that the provisions of it on the subject of the suffrage was a practical repeal of the fifteenth amendment of the constitution of the United States, and yet the result was effected in such a way that its legality could not be successfully denied.

The truth is, without reference to the designs of its authors, that we have under it in the state, to all intents and purposes, an educational qualification pure and simple. More negroes, the American Law Review and the Atlantic Monthly to the contrary notwithstanding, have registered under the alternate or understanding clause than white men. Only 2,672 illiterate, both white and black, had up to 1893 registered under it. I have not seen the figures since. The negroes who have taken advantage of it exceed the white men who have done so in a majority of the counties of the state.

It seems that the illiterate white man shrinks from an application to be registered under the "understanding clause;" a refusal to advertise his incapacity, while the negroes as a rule have but little to lose; but another truth is that with scarcely an exception the negroes are thoroughly content with the constitution, and are satisfied to be measured for registration and voting by its standards. The writer, as a member of the convention which adopted the constitution, voted against the "understanding clause," but now that he has seen its practical workings he is prepared to say that the

convention did the very best thing that it could have done under the circumstances surrounding it.

This "understanding clause" is not without a parallel in the constitutions of other states; as was pointed out by Senator George of this state in the United States Senate, it is no more difficult of honest administration than are the provisions of the constitutions of other states: for example, the constitution of Vermont of 1777 provided that an elector "should be of quiet, peaceable behavior," and the constitution of Connecticut requires at this day that the voter shall sustain "a good moral character," and numerous other like instances that might be mentioned.

The constitutional provision that a person shall not register as a voter within four months of an election is believed to be a wise measure; the ignorant, the indifferent and the sordid voter fails to register; political excitement never exists to any considerable extent so long before the election; there is no such thing as hiring men to register, for those who can be hired, cannot be trusted for so long a time to vote in the promised or expected way. It is believed that the provision is worthy of adoption everywhere.

The legislation of Mississippi under the constitution of 1890 conforms to that instrument.

By sections 3624 to 3640 of the code (1892) ample provision is made for appeals from adverse rulings of registration officers, and the humblest citizen of the land, the humblest negro, if you please, can invoke the courts of the country, even the Supreme Court, for protection in case he be improperly denied the right to register and vote, and he is also provided with ample remedy before the courts in every case where the right is improperly granted to others. These Code sections are as follows:

3624. *Appeal by person denied registration.*—Any person denied the right to register as a voter may appeal from the decision of the registrar to the Board of election commissioners by filing with the registrar, on the same day of such denial or within five days thereafter, a written application for appeal.

3625. *Appeal by other than person denied.*—Any elector of the county may likewise appeal from the decision of the registrar allowing any other person to be registered as a voter; but before the same can be

heard the party appealing shall give notice to the person whose registration is appealed from, in writing, stating the grounds of the appeal; which notice shall be served by the sheriff or constable, as process in other courts is required to be served; and the officer may demand and receive for such service, from the person requesting the same the sum of one dollar.

3626. *Appeal heard de novo.*—All cases on appeals shall be heard by the boards of election commissioners de novo, and oral evidence may be heard by them; and they are authorized to administer oaths to witnesses before them; and they have the power to subpœna witnesses, and to compel their attendance; to send for persons and papers; to require the sheriff and constables to attend them and execute their process. The decisions of the commissioners in all cases shall be final as to questions of fact, but as to matters of law they may be revised by the circuit and supreme courts. The registrar shall obey the orders of the commissioners in directing a person to be registered, or a name to be stricken from the registration books.

3637. *Appeal from the decision of the Commissioners.*—Any elector aggrieved by the decision of the commissioners, shall have the right to file a bill of exceptions thereto, to be approved and signed by the commissioners, embodying the evidence in the case and the findings of the commissioners, within two days after the rendition of the decision, and may thereupon appeal to the circuit court upon the execution of a bond, with two or more sufficient sureties, to be approved by the commissioners, in the sum of one hundred dollars, payable to the state, and conditioned to pay all costs in case the appeal shall not be successfully prosecuted; and in case the decision of the commissioners be affirmed, judgment shall be entered on the bond for all costs.

3638. *Duty of Commissioners in case of appeal to Circuit Court.*—It shall be the duty of the commissioners, in case of appeal from their decision, to return the bill of exceptions and the appeal bond into the circuit court of the county within five days after the filing of the same with them; and the circuit courts shall have jurisdiction to hear and determine such appeals.

3629. *Proceedings in the Circuit Court.*—Should the judgment of the circuit court be in favor of the right of an elector to be registered, the court shall so order, and shall, by its judgment, direct the registrar of the county forthwith to register him. Costs shall not, in any case, be adjudged the commissioners or the registrar.

3630. *Costs; compensation, etc.*—The election commissioners shall not award costs in proceedings before them; but the circuit and supreme courts shall allow costs, as in other cases. The sheriffs, when required to attend before the commissioners at their meetings, shall be paid two dollars a day, to be allowed by the board of supervisors.

Having now considered and presented the evolution of suffrage in this state and given by way of recital and incidentally at least, its present status, we come to consider the objects upon which the suffrage may be exercised, and this can be easily stated by the general averment that all legislative and executive officers are elected by the suffragists; the executive officers of the state are not elected necessarily by a plurality or a majority vote. We have a sort of an electoral scheme, which is created by the constitution in the following words:

SECTION 140.—The governor of the state shall be chosen in the following manner: On the first Tuesday after the first Monday of November of A. D. 1895, and on the first Tuesday after the first Monday of November in every fourth year thereafter, until the day shall be changed by law, an election shall be held in the several counties and districts created for the election of members of the house of representatives in this state, for governor, and the person receiving in any county or such legislative district the highest number of votes cast therein, for said office, shall be holden to have received as many votes as such county or district is entitled to members in the house of representatives which last named votes are hereby designated "electoral votes." In all cases where a representative is apportioned to two or more counties or districts, the electoral vote, based on such representative, shall be equally divided among such counties or districts. The returns of said election shall be certified by the election commissioners, or a majority of them, of the several counties, and transmitted, sealed, to the seat of government, directed to the secretary

of state, and shall be by him safely kept and delivered to the speaker of the house of representatives at the next ensuing session of the legislature within one day after he shall have been elected. The speaker, shall on the next Tuesday after he shall have received said returns, open and publish them in the presence of the house of representatives, and said house shall ascertain and count the vote of each county and legislative district and decide any contest that may be made concerning the same, and said decision shall be made by a majority of the whole number of members of the house of representatives concurring therein, by a viva voce vote, which shall be recorded in its journal; *Provided*, In case the two highest candidates have an equal number of votes in any county or legislative district, the electoral vote of such county or legislative district shall be considered as equally divided between them. The person found to have received a majority of all the elective votes, and also a majority of the popular vote, shall be declared elected.

Section 141. If no person shall receive such majorities, then the house of representatives shall proceed to choose a governor from the two persons who shall have received the highest number of popular votes. The election shall be by viva voce, which shall be recorded in the journal, in such manner as to show for whom each member voted.

Section 142. In case of an election of governor or any state officer by the house of representatives, no member of that house shall be eligible to receive any appointment from the governor or other state officer so elected during the term for which he shall be elected.

Section 143. All other state officers shall be elected at the same time and in the same manner as provided for election of governor.

The legislature is prohibited from electing officers to a very great extent by the following section of the constitution:

Section 99. The legislature shall not elect any other than its own officers, state librarian and United States Senators; but this section shall not prohibit the legislature from appointing presidential electors.

All the judges of the state, except justices of the peace, are appointed by the Governor by and with the advice and consent of the senate. Mississippi was, it may be mentioned parenthetically, the first state to provide for an elective judiciary; this was done in her constitution of 1832; but she is now as far away from that mode of selection as she can well be, her present constitution providing for their appointment and her people generally, it is believed, are thoroughly satisfied with the present status of the matter. There are two instances in which the electors vote directly upon the subject of the enforcement of laws; and without an affirmative vote in their favor the statutes are not enforced. These are, first the Local Option law, by which the qualified electors of a county, if a majority vote against the sale, may prohibit the licensing of dram-shops in the county, and under which a large majority of the counties of the state have secured absolute statutory prohibition of the liquor traffic; and, second, the fence and stock law, by which is determined the question of whether the owners of live stock shall keep them confined, and thus allow of the production of crops on unenclosed lands. This resolves itself into a question of "fences" or "no fences," and it is left to a vote in the counties, or parts of counties can vote upon it. This question is left to "the resident freeholders and leaseholders for a term of three years or more" of the territory so voting. It will be noticed that neither sex nor age is mentioned, and in truth women and infants do actually vote in the state, on this interesting and to those involved, most serious question.

The Supreme Court of the state has settled beyond cavil that the statute is constitutional and valid. This "fence" or "no fence" election is possibly an exception to the general rule of the state that a plurality vote elects or carries. I say, possibly is an exception, because of ambiguity in the statute, construed as I think it may be seen by some minds, it will require two thirds of the vote cast to put the "no fence" law in force.

All elections in Mississippi since 1821 have been by ballot, and this is now the constitutional rule; we have here the Australian or secret ballot system very much as it is found in a number of states of the Union, and it accomplishes in its practical operation the primary objects of the system; first, the absolute prevention of bribery, for no man will bribe a voter if the only evidence of the delivery of the contracted-for vote be the word of the

bribe taker, and, second, the prevention of intimidation of voters, which is practically impossible.

The absence from the voting place since the introduction of the system of the ticket broker and professional bumner is notable.

It was the intention of the writer when this article was begun to present his views on many of the questions suggested and germane to the general subject, but this paper has now grown so long that he will have to be content with a presentation of a mere historical narrative of matters pertaining to suffrage in this state. He consoles himself with the reflection that perhaps such a contribution may be more valuable to the true and earnest student of the subject than would be any discourse that he might write which in its nature was sought to be made philosophical, or which was merely speculative. If the facts are presented, if the history be made accessible, the student who is interested enough to read will draw the proper conclusions.

SPANISH POLICY IN MISSISSIPPI AFTER THE TREATY OF SAN LORENZO.

BY FRANKLIN L. RILEY, PH. D.

October 16, 1795,^[1] Thomas Pinckney, in behalf of the United States and the Prince of Peace, representing His Catholic Majesty, signed at San Lorenzo el Real, a treaty which contained among other things, the following stipulations:

"The southern boundary of the United States, which divides their territory from the Spanish colonies of East and West Florida, shall be designated by a line beginning on the River Mississippi at the northernmost part of the thirty-first degree of latitude north of the equator, which from thence shall be drawn due east to the River Apalachicola," etc.

"If there should be any troops, garrisons or settlements of either party in the territory of the other according to the above-mentioned boundaries, they shall be withdrawn from the said territory within the term of six months after the ratification of this treaty, or sooner if possible."

"One Commissioner and one Surveyor shall be appointed by each of the contracting parties, who shall meet at the Natchez on the left side of the River Mississippi before the expiration of six months from the ratification of this convention and they shall proceed to run and mark this boundary according to the stipulations."

"The navigation of the said (Mississippi) River, in its whole breadth from its source to the ocean shall be free only to his (Catholic Majesty) subjects and the citizens of the United States, unless he should extend this privilege to the subjects of other Powers by special convention."

"The two high contracting parties shall____maintain peace and harmony among the several Indian nations who inhabit the country

adjacent to____the boundaries of the two Floridas." "No treaty of alliance or other whatever (except treaties of peace) shall be made by either party with the Indians living within the boundary of the other."

These terms, so favorable to the United States and so destructive of Spanish interests, had long been the rock upon which all plans for an adjustment of the differences between the two powers had been stranded.^[2] Nor were they finally extorted from Spain until a concurrence of unfavorable events had precipitated a diplomatic crisis. Even then his Catholic Majesty seemed to consider such stipulations as only a temporary expedient, the fulfillment of which he hoped eventually to be able to evade. The Prince of Peace himself admits that political circumstances forced Spain to consent to the treaty and intimates further that he would have made even greater concessions if they had been demanded by the United States. In writing of these negotiations, he says:

"I had taken to heart the treaty (Jay's), which unknown to us the English cabinet had negotiated with the United States of America; this treaty afforded great latitude to evil designs; it was possible to injure Spain in an indirect manner and without risk, in her distant possessions.

"I endeavored to conclude another treaty with the same states, and had the satisfaction to succeed in my object; *I obtained unexpected advantages*, and met with sympathy, loyalty, and generous sentiments in that nation of Republicans."

Subsequent events proved, however, that Godoy had overestimated the probabilities of a consolidation of interests between the United States and Great Britain, and that Spain had also failed to gain that ascendancy over the affairs of this "nation of republicans," which she hoped to do through this treaty.^[3] She was therefore no longer interested in fulfilling its stipulations. These facts are substantiated by a letter which Stoddard^[4] claims was written by Governor Gayoso in June, 1796, to a confidential friend, and which came to light several years afterward. In this communication Gayoso claims that:

"The object of Great Britain in her treaty with the United States about this period, was to attach them to her interests, and even render them dependent on her, and, therefore, the Spanish treaty of limits was made to counterbalance it; but as Great Britain had totally failed in her object it was not the policy of Spain to regard her stipulations."^[5]

In order to evade the treaty, she now returned to a line of policy which she had adopted several years previous^[6] and which had also been tried by more than one foreign power^[7] since the combined efforts of England, France and Spain to "coop up" the United States between the Alleghanies and the Atlantic, at the close of the Revolutionary War.^[8] This was nothing less than a dismemberment of the United States. But the accomplishment of this bold project required time. She, therefore, resorted to her historic policy of procrastination, hoping ultimately to evade the treaty and thus regain what had been wrested from her in diplomacy. She was fully aware of the dissatisfaction the western states had expressed over the tardiness and at times the apparent indifference of the United States to the navigation of the Mississippi^[9] and she also realized that the publication of the treaty "would bring her project of dismemberment to a crisis and in a manner to compel the western people to make a decided election to adhere to the Atlantic states or to embrace the splendid advantages held out to them on the Mississippi."^[10] Hence, upon the announcement of the treaty in New Orleans, a Spanish emissary was immediately dispatched from that place to Tennessee and Kentucky, with authority to engage the services of the principal inhabitants in a scheme to disaffect the people towards the United States by the free use of money and promises of independence and free trade.^[11] In Gayoso's letter of June, 1796, referred to above, the assertion was made that,

"It was expected that several states would separate from the union, which would absolve Spain from her engagements; because, as her contract was made with the union, it would be no longer obligatory than while the union lasted. That Spain, contrary to her expectations, was not likely to derive any advantages from the treaty, and that her views and policy would be changed, particularly if an alteration took place in the political existence of the United States. He therefore

concluded, that all things considered, nothing more would result from the treaty than the free navigation of the Mississippi."^[12]

A second line of policy for evading the treaty was then opened up. This was to postpone an execution of its stipulations awaiting the development of certain international complications which seemed to be inevitable. There had been a rupture in the diplomatic relation of the United States and France and hostilities between these two countries seemed to be near at hand. Mr. Pickering, who was Secretary of State from 1795 to 1800, considered this the real cause for delay on the part of Spain, after contending that the other reasons given by the Spanish authorities were "merely ostensible," he says:

"The true reason is doubtless developed by the Baron (de Corondelet)^[13] in his proclamation of the 31st of May (1797). *The expectation of an immediate rupture between France, the intimate ally of Spain, and the United States.*"^[14]

By making common cause with France, in case of such a rupture, Spain evidently thought that she could recover some of the concessions she had made in the treaty, if compliance with its stipulations should not be too far effected.

In order to find time for the operation of these schemes, the Spanish officials produced, from time to time, such excuses as either the treaty or the circumstances rendered plausible. After months of fruitless delay, they determined to rest their final action upon the results of another effort to detach the western states from the Union. An emissary was again sent to Tennessee and Kentucky to confer with certain men who were former correspondents of the governors of Louisiana. He found, however, that the people were less disposed towards a change than they were ten years previous, especially since they were likely to secure the navigation of the Mississippi,—the real cause of their former disaffection—without resorting to a hazardous enterprise. After an eventful sojourn in this region, he returned to New Orleans in January, 1798, bearing the unwelcome report which convinced the Governor General that Spain had lost all hope of political prestige in the territory north of the 31st degree and east of the

Mississippi.^[15] Arrangements were then perfected for the execution of the treaty.

In the light of the Spanish policy as presented above, local events may be easily interpreted. As time was an indispensable condition upon which the success of this policy depended, it was gained by various pretexts. Don Yrujo, the Spanish minister, intrigued at Philadelphia, and his efforts were ably seconded by Carondelet, Gayoso^[16] and a host of subordinate officials on the Mississippi.

In accordance with a stipulation of the treaty, President Washington appointed the Honorable Andrew Ellicott^[17] as Commissioner to run the boundary line in behalf of the United States. He left Philadelphia for Natchez by way of the Ohio and the Mississippi, September 16, 1796. But his descent of the Mississippi had been anticipated by the Spaniards, who had prepared obstructive measures in advance of his coming. So that whenever he came in contact with Spanish officials they evinced a disposition to hinder his descent of the river, if not prevent it altogether.^[18] Some of them affected ignorance of the treaty, others appeared embarrassed at the presence of the Americans, while none of them had made or were making, so far as the Commissioner could observe, any preparations to evacuate the posts according to the terms of the treaty.

Before reaching his destination, Ellicott received a communication from Governor Gayoso, expressing his gratification at the arrival of the Commissioner in those waters and requesting that the military escort accompanying him should be left at the mouth of the Bayou Pierre, sixty miles above Natchez, in order to prevent an "unforeseen misunderstanding" between the troops of the two nations. Since the treaty had provided for such an escort, this request was deemed improper by Ellicott. He yielded the point, however, for the time being, out of deference to the wishes of the Governor.^[19]

Upon his arrival at Natchez, February 24, 1797, ten months after the ratification of the treaty, he found no one ready to co-operate with him in the performance of the duty assigned. To the contrary, he learned through private sources that the Baron de Carondelet, the Governor General of Louisiana, had declared that the treaty was never intended to be carried into effect, that as Commissioner on the part of Spain, he would evade or delay

from one pretense or another, the running of the boundary line until the treaty would become "a dead letter," and that Louisiana either had been, or would soon be ceded to France.^[20]

About this time a suggestive and characteristic event occurred which gives an insight into the temper of both the Spanish Governor and the American Commissioner. About two hours after the flag of the United States had been hoisted over the Commissioner's camp, Gayoso requested that it be lowered. This request met with a flat refusal, and though there were rumors of parties being formed to cut it down, "the flag wore out upon the staff."^[21] Gayoso explained, a fortnight later, that his objection to the flag was not prompted by a desire to show a discourtesy to the United States, but to prevent any unbecoming conduct on the part of the Indians.^[22] This explanation, however, seems to have been an after-thought. Suffice it to say, when it was offered the Indians had become so troublesome that Ellicott had determined to send for his escort. The Governor, after declaring that he would construe their descent as an insult to his master,^[23] and then suggesting that they might with propriety join the Commissioner at Loftus Cliffs, near Clarksville, finally consented that they go into camp at Bacon's Landing, a few miles below town.^[24] This put an end to the efforts of the Spaniards to draw Ellicott away from Natchez, the place designated by the treaty for the meeting of the commissioners.^[25]

After the lapse of a fortnight from the time of his arrival, Ellicott was informed that the Spanish Commissioner, the Baron de Carondelet, was detained in New Orleans in the discharge of duties incident to the war then waging between Spain and Great Britain, and that in his absence the business of the survey would devolve upon Governor Gayoso.^[26] March 19, had been settled upon as the time when the commissioners would begin operation, but with this change of commissioner, Gayoso gave notice that it would be impossible to proceed at the time appointed. He promised, however, to be ready at an early day. But, before these preparations were perfected, Spanish finesse had discovered a new reason for delay. This in turn was followed by others until May 11, when Ellicott was finally informed that the business upon which he had come was postponed indefinitely, awaiting further orders from the ministers of the two powers

concerned.^[27] These pretexts having varied from time to time, it would be well to present them in one view.^[28]

I. NECESSITY OF AWAITING THE RESULT OF NEGOTIATIONS FOR SECURING THE INHABITANTS IN THE POSSESSION OF THEIR LANDS.

This reason was first given in a proclamation issued by Governor Gayoso on the 28th of March, 1797, but bearing the date of the day following. It was reiterated in a second proclamation of the same date. Yet, when the Secretary of State, two and a half months later, received from Commissioner Ellicott a notice of this reason for delay, he declared that no such negotiation had existed and that it was the first time these objections to the evacuation of the posts had been heard of.^[29] Two months later still he observed that,

"As___the great body of the inhabitants (of the territory) appear not to desire the patronage of the Spanish Government to secure it (their real estate); as the Government of the United States must be at least as anxious as that of Spain to protect the inhabitants in their rights when (they) become citizens of the United States ... there can be no difficulty in deciding whether this is a reason or a pretense. Besides, the negotiation ... has never existed; nor even been proposed or hinted either to or by the Government of the United States."^[30]

Orders were promptly issued, however, by the President and the Secretary of War to assure Governor Gayoso that no person would be "disturbed in his possession or property, till an opportunity had been afforded to apply to Congress," and that they might "rely upon their claims being adjusted upon the most equitable principles."^[31]

II, DESIRE OF FIRST ESTABLISHING FRIENDLY RELATIONS BETWEEN THE INDIANS AND THE INHABITANTS OF THE TERRITORY TO BE CEDED^[32].

On this subject Gayoso asserted that it was "impossible for His Catholic Majesty to leave unprotected so many of his faithful subjects and expose other settlements to the revengeful disposition of discontented Indians." He therefore felt justified in retaining possession of the country until he might be sure the savages would be pacific.^[33] The Secretary of State contended that such a reason would warrant the assertion, that "the Governor meant, for an indefinite period to avoid an evacuation of the posts: for, while a tribe of Indians existed in that quarter, the Governor could not be *sure* that they would be pacific."^[34] He observed further, that,

"Upon a view of the whole correspondence ... submitted to the President, it appears that there is but too much reason to believe ... that an undue influence has been exercised over the Indians by the officers of His Catholic Majesty to prepare them for a rupture with the United States, those suspicions corresponding with other intelligence recently received by the Secretary of War and by me."^[35]

Instructions were issued by the Secretary of War to assure the Spanish Commandant that effort would be made "to preserve a continuance of the pacific dispositions of the Indians within our limits, towards the subjects of His Catholic Majesty or his Indians; and to prevent their commencing hostilities (of which there is no appearance) against either."^[36]

III. NECESSITY OF CONSULTING THE KING CONCERNING THE CONDITION IN WHICH THE FORTS WERE TO BE SURRENDERED.^[37]

The treaty failed to specify whether the posts should be surrendered with the buildings and fortifications intact, or whether they should first be dismantled. Gayoso declared that a treaty with the Indians required a demolition of the post at Walnut Hill and that orders had been issued to that effect, but that owing to their unsettled dispositions he had received counter orders to prevent the fortifications from being injured.^[38] General Wayne took the position that the posts should be left standing.^[39] President Adams, however, left the matter entirely to the discretion of the Spanish officials,

and thus at once brought an end to the validity of this excuse.^[40] On this sub-Secretary Pickering maintained:

"It is probably the first time that to 'withdraw,' or retire from a place, has been imagined to intend its destruction. If, at the formation of the treaty, the demolition of the posts had been intended, it would assuredly have been expressed."^[41]

When the Spaniards had really decided to surrender the district, no further mention was made of this subject, showing that, notwithstanding their treaty with the Indians, they considered the demolition of the forts of no consequence whatever.

IV. EXPECTATION OF AN ATTACK UPON LOUISIANA BY A BRITISH FORCE FROM CANADA.

Suspicion to this effect, though based upon reports more or less vague, had been expressed by the Spanish Minister as early as the February preceding; and had been reiterated by him from time to time,^[42] until at the expiration of three months, it had developed into a pretext for delaying the execution of the treaty. In fact, the Baron de Carondelet asserted in a proclamation of May 24, that further delay in surveying the boundary line and in evacuating the forts was then occasioned only by the imperious necessity of securing Lower Louisiana, in case the British should become masters of the Illinois country^[43] and that such apprehensions had caused him to put the post at Walnut Hills "in a respectable but provisional state of defence."^[44] Secretary Pickering not only considered these suspicions groundless, but contended further that,

"If the posts of the Natchez and Walnut Hills 'are the only bulwarks of Lower Louisiana, to stop the course of the British,' as the Baron alerts and if, therefore, Spain is justifiable in holding them, she may retain them, without any limitation of time, for her security in any future war, as well as in that which now exists."^[45]

Before the appearance of the Baron's proclamation containing this reason for delay, the Spanish Minister had been informed that the Secretary of

State saw no reasons for such suspicions and the British Minister had been notified that the Government of the United States would suffer neither British nor Spanish troops to march through its territory for the purpose of hostility of one against the other.^[46] The Spanish Minister replied^[47], however, that he knew to a certainty that the English had made a proposition to General Clarke of Georgia in order to secure his influence in that State in a proposed attack against Florida. At the request of Mr. Pickering, this report was investigated by the District Attorney of Georgia. He replied that he could not find any one who knew of the matter or who entertained a belief of the report; and that from General Clark's known violent antipathies to the English and other circumstances, he doubted the truthfulness of it altogether.^[48]

When the attention of Mr. Liston, the British Minister, was directed to the subject, he pointedly denied that his government either had intended or was then intending to invade Louisiana.^[49] A few days later, however, he admitted that a plan for attacking the Floridas and other Spanish possessions adjoining the United States had been submitted to him by other persons, whom he declined to name, but stated it was discountenanced by him because its success depended upon a violation of the neutrality of the United States and an enlistment of the Indians. According to this plan, the expedition was to be undertaken by a British sea force, which would be joined by such volunteers of the United States as would join the king's standard when raised on Spanish soil.^[50]

The noted conspiracy of Senator Blount of Tennessee then came to light^[51] and precipitated a spirited discussion between the Spanish Minister and Mr. Pickering. The former contended that the plot had been revealed and that no one any longer doubted that the expedition was to have taken place,^[52] while the latter maintained that there could have been no connection between Blount's scheme and either the expedition from Canada,^[53] or the project attributed to General Clarke.^[54] The Secretary argued in support of his position that Blount's expedition was to have been formed in one of the states south of the River Ohio; that it was destined against the Floridas, and perhaps Lower Louisiana; that Blount himself expected to be at the head of it; that it was not to be undertaken but in conjunction with a British force; and that "on the proposal of the expedition to the British Government, it

was totally rejected."^[55] He maintained further that the suspicion of a British invasion from Canada was groundless for the following reasons:— (1) Preparations for such an expedition would have attracted attention and rendered satisfactory proofs attainable; (2) the troops of the United States, stationed along the Canadian border, were in position to protect the frontier, as well as to get information of any warlike preparations and communicate the same to the Secretary of War, yet no such communications had been made; (3) the British did not have on the lakes a force adequate to such an enterprise; (4) the routes suggested for such a campaign would have interposed great difficulties for the transportation of troops, equipage, provisions, etc., even if they could have been taken without violating the territory of the United States; and (5) the British Minister, after inquiring of the Governor General of Canada and of "the British Secretary of State," denied that his Government either had intended or was then intending such an expedition.^[56]

V. FEAR OF AN ATTACK FROM THE UNITED STATES.

In the Spring of 1797, certain American troops were sent from the Ohio into Tennessee for the purpose of preventing a forced settlement upon the Cherokee lands. Orders were also given the Cumberland militia to hold itself in readiness to prevent similar encroachments.^[57] These facts were seized upon by Carondelet, who asserted in a proclamation of May 31, that since the United States was at peace with all the savages, these movements must concern the Spanish provinces. To make this pretext more plausible, the proclamation also made mention of "the anterior menaces" of the representatives of the United States at Natchez;^[58] of the expected rupture between that Power and France, the intimate ally of Spain; and of the recognition by the United States of the right of England to navigate the Mississippi, which, the Baron adds, "appears to annul" the treaty with His Catholic Majesty, by which the United States acknowledged that "no other nation can navigate upon the Mississippi without the consent of Spain."^[59]

Secretary Pickering regarded the expectation of a rupture between the United States and France as the real cause of the delay in running the boundary and in evacuating the posts.^[60] With reference to any hostile intentions on the part of the United States, he wrote,

"Never, perhaps, was conceived a more absurd idea, than that of marching troops from the Ohio to the State of Tennessee, and thence to the Natchez, in the whole a tedious, difficult and expensive route of many hundred miles, chiefly through a wilderness; when, if the United States had any hostile views, they had only to collect their troops to the Ohio, and suffer them to be floated down that river and the Mississippi, almost without labor, with great expedition, and at small expense, to the county to be attacked."^[61]

These pretexts were usually accompanied by a profusion of promises and explanations which rendered them more or less plausible. Besides this, the Spaniards on more than one occasion made appearances of beginning the evacuation.^[62] Although declaring that nothing could prevent the religious fulfilment of the treaty, they were, at the same time, strengthening their fortifications and augmenting their forces on the river. Under such circumstances, the presence of American soldiers and officers was not desired. This fact explains the efforts of Governor Gayoso to prevent Ellicott's escort from reaching Natchez and the attempts to entice the Commissioner himself away from that place.^[63]

He had scarcely failed in these schemes, however, when he heard of the descent of Lieutenant Pope with a small detachment of American troops to take charge of the posts upon their evacuation. He then sent Ellicott an open letter directed to Pope, in which it was stated that "for sundry reasons it would be proper and conduce to the harmony of the two nations" for these troops to remain at a distance until the posts were evacuated, which would be completed in a few days. But instead of complying with the Governor's request to second this effort at harmony, Ellicott wrote to Pope that there was evidence to show that an evacuation was not really intended in any reasonable time and that in his opinion the sooner the American troops reached Natchez the better.^[64] Upon receiving the Governor's letter Pope stopped his detachment at the Walnut Hills. April 17, Ellicott wrote a second letter stating that a rupture with the Spanish authorities at Natchez was near at hand and that in his opinion the Lieutenant could better serve his country at Natchez than at any other point on the river.^[65] In response to this letter, Pope and his command resumed their descent, the Governor finally consenting, and reached Natchez April 24, 1797.^[66]

Such are the general outlines of the contest that was waged between the representatives of the two powers over the dilatory policy of Spain. Subsequent diplomatic discussion centered on the navigation of the Mississippi and the affairs at Natchez assumed the form of a popular outbreak against the established government in the district.

**TIME AND PLACE RELATIONS IN HISTORY,
WITH SOME LOUISIANA AND MISSISSIPPI
APPLICATIONS**

PROF. H. E. CHAMBERS.

A student or writer of history, imbued with the true and scientific spirit of historical research and expression, would hesitate to accept the task of compiling the narrative of a State or country if it were required of him to confine himself strictly to local events. He would, indeed, find it difficult to isolate the facts bearing upon the State or country from their antecedents, distant in time and space, or from their consequents when communicated to contemporaneous and succeeding communities, or social organizations.

The great stream of human affairs is a tide of many currents. He who would pilot by his pen the reading multitude must note the crossings and the blendings, the counter-runings and the parallelings. He cannot take an arbitrary stand and say that this tide of affairs began in this place and ended in that; or that this course of events began in such a year and ended in such another. Back of every motion is an impelling power. Back of every individual action lies the basic principles of human conduct. Back of every manifestation of corporate activity may be found a pulsive social force. Neither individual nor social movement can be studied understandingly alone. Each forms a link in a chain whose beginning and end may not be clearly seen, but whose continuity may be inferred from upholding and depending contiguous links.

This continuity when once perceived enables us to bring into relation widely associated ideas. For instance, the history of Oregon, through the first English explorer of its shores, leads us to the point where the intense vitality of the English nation was first directed to securing the naval supremacy of the world. The history of any one of our north-central States introduces us to the follies, fashions, and ambitions of the French Court under several Louises; to a long series of moves in one of the most complicated games ever played upon the chess-board of European politics; and to the most critical period in American affairs when Virginia by generously renouncing an empire appeased discordant and jealous elements and made possible the formation of the Federal Union. Patrick Henry's passionate plea for liberty was but the echo of the clarion call which rang over Runnymede centuries before, and this call was but the voicing of an idea which dominated the most primitive of Teutonic peoples in the remotest past. And so I might make innumerable citations to show that the

present is but the heir to the past; and that what is, stands in close relation to what has been.

If time relations may be demonstrated by the association of remotely associated ideas, or by tracing modern institutional fruitage to their root points buried in the soil of the past, then may other correlations be as easily established.

The idea of place as a background to historic treatment has, to a certain extent, undergone change. The former conception has been that of a region with artificial bounds established by accident, treaty, or legislative enactment. The more modern conception is that of a physiographic area whose limits nature herself has fixed and within whose confines fundamental ethnic ideas crystalized into institutional, social, political, and religious forms have reached or are reaching complete or incomplete expression.

Every great civilization that has ever arisen is or has been a composite civilization. Isolate an individual, a community, a people, or a race and no matter how favorable may be the circumstances and environment, the advance made will only be so far and no further, the final point of which advance is characterized by rigidity of thought, fixity of forms, and slavish repetition of actions. The greater Chinese Wall of non-intercourse encircling the Mongolian nation for centuries cast the civilization of the Flowery Kingdom into molds of monotony whose stiffness has yielded only to the breaking of Occidental hammers upon Chinese commercial portals.

The autochthonous civilization of Peru and Mexico hardly attained the dignity of semi-barbarism. What might the Inca or Aztec have become had the influx of European culture-impulses reached his mind before its plasticity was lost, or had the gifts of acquired experience and knowledge been brought to him by hands guiltless of his scourging and innocent of his blood?

On the other hand, let an individual mingle with his fellows; a race or community enters into political or commercial relation with its neighbors, the divine sparks struck off by the attrition of mind with mind kindle the fires which illumine the spiritual in man and sets in motion the machinery of human progress. What student of history fails to recognize the influence of Phoenician letters and Egyptian thought upon Greek civilization; of

Greek literature and ideals upon Roman character and development; of Roman genius for organization and talent for legal forms upon modern enlightened nations; of whatever was best in the past upon whatever is best in the life and thought and aspirations of the present.

Egypt began to advance when caravans first made their way to her over heated outlying deserts, for these brought to her something more than myrrh and incense, and precious fabrics. Greece developed with phenomenal rapidity as soon as her galleys sprinkled the blue waters of the Mediterranean, for with every incoming freight came a whisper of rudimentary art or culture which she forthwith clothed in beautiful form and language. England was provincial and primitive until her commercial supremacy made her the bearer of civilization to every corner of the globe. She has received more than she has given. Look where we will, we see unmistakably the effects of action and reaction in the intercourse of nations and communities.

In taking up the history of any one state of the Union, then, we find it impossible to confine our observation to accidental or unrelated happenings, however these happenings may find careful chroniclings at the hands of local scribes and unphilosophic writers. We see the States as a part of a physiographic area having in common with other parts the determinative elements of soil and climate which by prescribing industries, affect desires, ambitions, thought, and other forms of human activity. We study community forces and estimate their quality and intensity as they find expression in characteristic social and political institutions. We consider the people in their racial attitude, anticipate similar results from similar motives as conforming to the spirit and experience of the ethnic type to which the majority of the people stand related. We regard the State as an organic whole, a corporate being related to other similarly constituted beings. Take what position we will, there come into our line of vision ideas, origins, effects, reactions, and relations which show us that a State's history extends indefinitely into the past and in the present ramifies to every part of the larger, body-politic of which it is a constituent member.

Apart from general principles there is a singular correlation between the history of this your State and the history of the one I so inadequately represent upon this occasion (First Annual Mid-Winter Meeting of the Mississippi State Historical Society). Both States were originally a part of

that great continental heart of North America, that wilderness of empire-like extent, contended for by mighty nations in epoch-making struggles. Both owe their initial territorial organization to the commercial needs of the American people of a hundred years ago. Up to a certain point the history of the one is but the history of the other. The first settlement, paradoxical as it may seem, in Louisiana was made in Mississippi. De Soto crossed your State and died in ours. The same people who founded our city of New Orleans established your city of Natchez. The narratives of Bienville and Iberville are as closely associated with your history as they are with ours. The two principal Indian wars waged by the Louisiana colony were fought upon Mississippi soil. The first appointed governor of the Mississippi Territory was the first appointed governor of the Louisiana Territory. When under Spanish rule that portion of our domain known as the Florida parishes revolted, it was Reuben Kemper from your territory that rallied to the support of the revolutionists and struck such terror in the Spaniard's breast that Governor Folch of Mobile piteously appealed to the United States Government for protection. When the West Florida revolution was crowned with success and an addition of new territory to the United States resulted, Mississippi received her portion as well as Louisiana. When in the days of the American Revolution the notorious Willing came down from Philadelphia, ostensibly to protect but really to rob, our district of Baton Rouge felt his vulture clutch as keenly as did your district of Natchez. In later times, when our Zachary Taylor found himself upon the border lands of Mexico, an overwhelming foe in his front and war hardly yet declared, your riflemen under Jefferson Davis joined our Louisianian in rushing to his assistance, long before the general government moved to protect its own. We followed you out of the Union. Disaster to you was calamity to us. The cause of the Confederacy we shared in common. Our dead are sleeping together upon the old battlefields in every part of our Southland. We are common sharers of the heritage of brave deeds and undying memories. Your peerless citizen, the first and only president of the Confederate States, died in our arms and we gave him such sepulture that the continent trembled under the all-powerful force of sentiment. We have faced your dangers, felt your needs as only a people can whose interests are one with yours. The spirit that framed your present constitution is pulsing in our veins. And so, did the time limits of this paper permit, might I continue to enumerate indefinitely the instances in which History wipes out the boundary line by

which maps unblushingly infer that we are two peoples, having separate interests and lines of thoughts. True history is broadening; never narrowing. It is because so much of Louisiana history is Mississippi history, and so much of Mississippi history is in the chronicles of Louisiana that the narrative of either State calls for so broad and liberal and inspiring a treatment at the hands of the historian.

THE STUDY AND TEACHING OF HISTORY.

BY HERBERT B. ADAMS, PH.D.

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Among all the subjects of college study and college teaching, among all the means of liberal education fitting young men for civic life and public duty not one stands higher than the study and teaching of History.

In my senior year at Amherst College, President Julius H. Seelye gave my class a single lecture on the Philosophy of History. Among other good things he said: "History is the grandest study in the world." That remark made the profoundest impression upon my student imagination. I said to myself, "If History is the grandest study in the world, that is exactly the study I want." The good President proved his statement to my satisfaction by showing the relation of Greek and Roman civilizations to the spread of Christianity and the education of Europe.

In Germany I first learned the true method, and at the same time, the most practicable ways and means of studying and teaching history. Amid a pleasant variety of academic courses by brilliant lecturers like Kuno Fischer, Zeller, Ernst Curtius, Grimm, Treitschke, Droysen, Du Bois Raymond, Lepsius, and others, I somehow felt a lack of educational unity and system. There was need of some backbone to unite the skeleton of human deeds and historic experiences. This I found at last in the teachings of my old master, Dr. J. C. Bluntschli, at Heidelberg. In his lecture courses on the State, on the Constitutional Law, on Politics and on the International Law of Modern Civilized States, I first began to realize that government and law are the real forces which bind society and the world together. I began to see that the true unity of the world's life is to be found in the succession of States, Empires, Federations, and in the International Relations, which are slowly leading to such great aggregations as the United States of America and the United States of Europe. In Germany I learned from a reading of Bluntschli's various writing, including many noble articles in his *Staatswörterbuch*, that there is such a thing as the World-State now in process of evolution. From the published records of the

Institute of International Law, of which Dr. Bluntschli was the president, and from a study of the subjects of Arbitration and International Tribunals, I thought I could dimly discern the beginnings of that Parliament of Man, the Federation of the World, of which the Poet Tennyson sings in his Locksley Hall.

When I came to Baltimore three ideas of study and teaching were uppermost in my mind: (1) the study of the origins of municipal life, in order to find out whether it was Roman or Germanic; (2) the study of the relations of Church and State, from their beginning down to the present, for I had learned to believe in Germany that the separation of civil from religious society is America's greatest contribution to the world's progress; (3) the continued study of art history for its own sake and as illustrating the history of civilization.

Out of the first of these ideas, developed by a reading of the works of Sir Henry Maine, has grown my Historical Seminary and a long series of University Studies in Historical and Political Science (chiefly on Municipal, Economic and Institutional themes). Out of the second idea evolved successive courses of lectures on Church and State, or Religion and Government in the Ancient and Graeco-Roman World, together with my whole system of graduate instruction upon the Early History of Society, Greek and Roman Politics, Jewish and Church History, and certain modern States like Prussia and France. The third idea never had a good chance for development until recent years when I have fairly begun to realize my original conception of illustrating in concrete, artistic ways the progress of civilization.

Goldwin Smith, in his Lecture on History, says there can be no philosophy of history until we realize the unity of the human race and that history must be studied as a whole. Twenty years ago, at the Johns Hopkins University, I began to teach Local History, as representative of Universal History. I began with New England Village Communities, with Plymouth Plantations, Salem and the Massachusetts Bay Towns, those little republics which seemed to me the very protoplasm of State life. The survival, continuity or revival of old Germanic forms of village settlement, with common fields and town commons, impressed my imagination and interested my students. They carried this kind of study into this State of Maryland and original papers by Maryland boys were published upon such subjects as Parishes,

Manors, and other local institutions. These lines of inquiry were extended down the Atlantic seaboard to Virginia and the Carolinas. Gradually the field of interest has been widened from towns, plantations, parishes, and counties until now the constitutional, economic and educational history of entire States is in review or contemplation.

While I still believe in Local History and in limited subjects of student research, I now recognize more fully than I used to do, the importance of General History, especially for college students and college graduates in the early part of their course. After all, the great fact in History, as well as in Geography, is that the world is round. You must recognize all human experience on this globe as parts of one great whole, just as you recognize that the continents and outlying islands are but related parts of one vast geographical system. In every properly arranged course of school and college instruction in the domain of History, this doctrine of unity ought to be taken for granted. It is like the doctrine of divine unity in theology or in nature, like the sun in our heavens. It gives light and rationality to any and every course of study.

I used to think that it was the first duty of a boy to know the history of his own State and country; but I am now persuaded that he should know the history of mankind and of the world. Nobody would study geography or geology from a purely local point of view. You must have a consciousness of the whole in order to appreciate the parts of any subject. It is a mistake to imagine that a boy or girl cares most for what is nearest and most familiar. Children are always gifted with imagination. They rejoice in the thought of lands that are far off, of men who lived in olden times. They take the greatest pleasure in heroic tales of Cyrus and of Hannibal, of Horatius and of the great twin brethren, Castor and Pollux. Mythology, minstrelsy, Bible stories, and lives of great warriors, explorers, discoverers, inventors, these are of supreme interest to boys and girls. American History should be taught to American youth, but chiefly the heroic, the romantic, the biographical, in short the more human sides of our colonial and national life.

History begins and ends with Man. Biographical approaches to the world's life are the oldest, and best beaten paths for youth to follow. Carlyle and Froude are among the champions of the biographical method of studying and teaching History. When Froude succeeded Freeman at Oxford the biographical idea was at once brought to the front. Froude quoted Carlyle as

saying: "The history of mankind is the history of its great men; to find out these, clean the dirt from them, and place them on their proper pedestals, is the true function of the historian." And Froude, the new professor, entered at once upon those splendid and inspiring courses of lectures, in which the personal and biographical elements entered so strongly.

Every American student should read Froude's lectures on "English Seamen in the Sixteenth Century," that brilliant account of Sir Francis Drake, Sir John Hawkins, and the great captains of England who gained a new world for Elizabeth and defeated the Spanish Armada. You should also read Froude's Lectures on the "Life and Letters of Erasmus" if you would understand the relation of the great religious reform to the new learning, which Erasmus represented.

Is it not wonderful that by reading a brief biography, which perhaps occupies our leisure hours for a week, we can grasp and understand the life-work of a great man? Think of it! A whole life in one book. A whole history is in one of Plutarch's chapters. By turning to that new series of biographies called "Heroes of the Nations," you can study or teach the lessons derived from the lives and characters of such great men as Pericles, Cicero, Julius Caesar, Julian the Philosopher, Theodoric the Goth, Wyclif, the first of the English reformers, Prince Henry the Navigator, Henry of Navarre, Sir Philip Sidney, Gustavus Adolphus, Napoleon, Nelson, and Lincoln. Another excellent biographical series is that called "English Men of Action," published by Macmillan, and containing such noble lives as those of Wolfe, the conqueror of Quebec; David Livingstone, the Explorer of Africa, Lord Lawrence and Sir Henry Havelock, the saviors of India; General Gordon, the Hero of Khartoum. If your taste runs toward literature, you should read select biographies in the series called "English Men of Letters," embracing such characters as Gibbon, Carlyle, Byron, Shelly, and Hume. There is a corresponding American series, edited by Charles Dudley Warner, and embracing such men as Washington Irving, J. Fenimore Cooper, and Edgar Allan Poe. But among all biographies for boys and young men I know nothing better than the Autobiography of Franklin. This has encouraged and quickened many young Americans to a desire of knowledge and self-culture.

But let no student or teacher believe for one moment that historical biography is the full equivalent of History. Not all the biographies that have

ever been written could possibly contain the world's great life. As the poet Tennyson truly says: "The individual withers, but the world is more and more." There must be great men in Church and State, to lead society forward, but there must be unnumbered thousands, yea millions, of good men and true, and of faithful, devoted women, in order to support good leadership and carry humanity forward from generation to generation. It is often the biography of some plain man or self-sacrificing woman that affords the greatest encouragement and incentive to ordinary humanity. But we must remember that no man, no woman is worthy of biographical or historical record, unless in some way he or she has contributed to the welfare of society and the progress of the world. Only those deeds which affect our fellow men in some noteworthy manner are fit for commemoration. What you do as a private individual, what you ate for breakfast, what you do in the seclusion of your own room, is not necessarily historic; but whether Napoleon was able to eat his breakfast on the morning of the Battle of Waterloo, or whether an army has been properly fed, may have the greatest historic significance.

Not man alone, but man in organized society, is the subject of History. Man in his relation to his fellows, man as a military, political, social, intellectual, and religious being may become historic. Dr. Thomas Arnold sometimes defined History as the biography of nations. This is a large and noble conception, although not the largest, and it may be profitably emphasized, like human biography in the study and teaching of History. It is the duty of every school and college to lay great stress upon the history of England and of the United States in addition to General History. We all need to know the lives of our own people as well as the lives of great Englishmen like Pitt and Gladstone, and great Americans like Washington and Lincoln. We should teach and study the histories of those nations which are nearest our mother country—Scotland, France, Germany, and Italy. As Germany is now the great seat of culture and of university life for American students who go abroad, so was Italy for wandering English students in the days of the Renaissance. English literature from that time onward is pervaded with Italian elements, with the influences of "all Etruscan three," Dante, Petrarch, and Boccaccio, and also with the ideas of Machiavelli and the Italian historians. We cannot understand the literature of England or America without going back to its French and Italian sources. It would be wise for college professors of history to devote special attention to the

Italian Renaissance or Revival of Learning, without which an understanding of the German Reformation and modern education is an impossibility.

In reading the biography of men or the biography of nations, teachers and students should note carefully the most interesting and memorial points. If you own the book which you are reading, use for note-taking the fly leaves at the end. Otherwise, use reference cards, like those employed in a library for a card catalogue, or else sheets of note paper. When you have found a fact or illustration which you think will prove useful at some future time, in connection with your work as a teacher or a student, note it briefly on paper with the proper reference to the book and page. Remember Captain Cuttle's advice: "When found, make a note of!" Recall the saying of Lord Bacon: "Reading maketh a full man, conference a ready man, and writing an exact man. And, therefore, if a man write little, he had need have a great memory."

In the multitude of modern books and amid all the variety of our modern reading, it is impossible to remember exact quotations and historical details. We must have a good system of note-taking and index-making. Every student and teacher can invent his own system. Mine is the use of fly leaves in books and cards topically and alphabetically arranged for miscellaneous data. I always carry a few of these reference cards in my pocket and make all my notes under appropriate catch words, for example, "Chautauqua" or "Johns Hopkins University," with the name of the writer on this subject and the exact reference or quotation.

Begin to collect a library for yourselves. Students and teachers do not always appreciate the opportunities they enjoy of acquiring good books of History. I would strongly urge students to save their money instead of spending it on poor theaters and variety shows. Buy standard books of literature, art, and history; devote your leisure hours to good reading, always with pen and pencil in hand, and with a dictionary and an atlas beside you. *Seize the moment of excited curiosity* and look up every point on which you need exact information. One of my former students, Dr. Albert Shaw, now editor of *The Review of Reviews*, said he was more grateful to me for that advice than for any other one feature of my instruction: *Seize the moment of excited curiosity*, or it will be lost forever.

An English writer, Langford, in his *Praise of Books*, well says: "In books the past is ours as well as the present. With them we live yesterday over again. All the bygone ages are with us, and we look on the face of the infancy of the world. We see the first dawning of thought in man. We are present at the beginnings of cities, states, and nations; and can trace the growth and development of governments, policies, and laws. The marvelous story of humanity is enacted again for our edification, instruction, and delight. We behold civilizations begin, struggle, triumph, and decay, giving place to higher and nobler as they pass away. Poet, lawgiver, and soldier sing their songs, make their codes, and fight their battles again, while we follow the never-dying effects of song, of law, and of battle. We sit down with 'princes, potentates, and powers,' watching them, as they think, governing the world.... Shut up in a little room we can witness the whole drama of man's history played on the vast stage of the world. All that he has thought and done from the earliest dawn of recorded time to our own day is enacted before us; and our hopes are strengthened, our faith deepened, in the great destiny yet awaiting mankind; in the higher, holier work yet to be done by those who have accomplished such mighty things, achieved such noble victories. Books which record the history of the past are the infallible and unerring prophets of the future."

"History is the grandest study in the world." My College President, Dr. Julius H. Seelye, was right. There is no art or science comparable to it, for it embraces the whole experience of man in organized society. History takes hold of all the past and points the way to all the future. The French historian, Guizot, in his "History of My Time" (III. 162) says: "Religion opens the future and places us in the presence of eternity. History brings back the past and adds to our own existence the lives of our fathers." Pliny said of History: "Quanta potestas, quanta dignitas, quanta majestes, quantum denique numen sit historiae." Perhaps the highest conception of History comes from the Greek. The etymology of the word is an inspiration for both student and teacher. History, from the Greek word *historia*, is a knowing or learning by inquiry. To study History is to understand by means of research, for History is a science; its very essence consists in knowledge. Historical science is perhaps the most comprehensive and the noblest of all sciences, for it is the self-knowledge of Humanity. The subject of History is Humanity itself; it is the self-conscious development of the human race. History, therefore, does not consist in dead facts, but is itself a living fact; it

is the self-knowledge of the present with regard to its evolution from the past. Clio is a living muse, not a dead, cold form. She stands upon that very threshold of the future and glances backwards over the long vista Humanity has traversed. In the plastic art of the Greeks you will notice that the muse of History is represented in the attitude of reflection; the pen is uplifted, but the word unwritten.

We sometimes speak of written history and of its standard works as though the essence of that science consisted in books and not in knowledge. "There are no standards of history," said Droysen, a German professor to an American student who had asked his advice respecting the choice of standard works for an historical library. In this caustic saying there lies a profound truth. History is a living, self-developed science, not a collection of fossils. Books like facts, are sometimes dead to history, and historical standards, like historical facts, are grander in their spiritual influence than in their material form. In the onward march of historical science, historians are perhaps the standard bearers of fact and their works may be called the battle-flags of history which kindle the zeal of the ever-advancing present in men and awaken a sense of unity with the great past, which has gone on before us. But written history often becomes shot-riddled by criticism and is set away, at last, like battle-flags, after many honorable campaigns, in some museums of relics or some temple of fame. Unless such trophies continue to awaken in the living present a sort of enthusiasm and a sense of unity with the past experience of our race, then are our historic standards but antiquarian rubbish, indeed, as useless and unmeaning as the banners and symbols of heraldry.

The subject of History is the self-conscious development of the human race, the Ego of Humanity. The realization of this Ego does not lie in any fictitious personality, but in the universal consciousness that man is one in all ages and that the individual human mind may mirror to itself and to others the thought and experience of the race. As the heavens are reflected in a single drop of dew, so in the thoughts of the individual human mind we may sometimes behold a reflection of the self-knowledge of Humanity. For the individual is sometimes the very best expression of the whole with which it stands in connection. The onward march of world-history seems to have concentrated itself in the development of individual peoples like the Jews, Greeks, Romans, and the Germanic peoples. As these nations best

typify historic progress and certain world-historic ideas, so the historic thought of manhood may be most fully realized by individual minds. For example, a single historian, like Thucydides, may reflect the self-consciousness of his age, and a single mind, in our own day, may realize, in some measure, at least through the works of history, the self-knowledge, the Ego of Humanity. It should be the aim of every student of History thus to realize in his own consciousness the historic thought of mankind. "The life of each individual," says Dr. W. T. Harris, the American Hegel, "presupposes the life of the race before him, and the individual cannot comprehend himself without comprehending first the evolution of his day and generation historically from the past."

Let us then regard the study of History, not as something wholly objective but as an unfolding panorama of the human self-consciousness, for history is merely the reflecting spirit of mankind in which we ourselves may have an immediate share, which we all may help to perpetuate and in some way enlarge. Let us remember that History is a constant knowing and learning, the self-knowledge and communion of reflecting spirits in all ages and a perpetual "Know Thyself" to advancing time. There is something indescribably solemn in the historic pausing of Man before the temple of the unknown future and seeking to realize in himself the *gnothi seauton* or "Know Thyself" of Humanity. He glances backward through the long vista he has traversed and as far as the eye can see, his pathway is cumbered with ruins. Crumbling monuments and fallen columns reveal the wreck of all material greatness, while the distant pyramids but remind him of the more than Egyptian darkness out of which Humanity has been mysteriously led unto this mountain of light which we call the Present or that Living Age. Man sees the immense distance he has come and he remembers the perils and disasters he has encountered in his upward way; he is conscious too of having brought a vast wealth of experience to this temple of the Future before which he now stands, but that which fills and overwhelms the historic consciousness of Man is the feeling that the place whereon he stands is holy ground and that there is a mysterious power in his own soul calling him to self-knowledge and to self-judgment before he may lift the veil of the future. This is the supreme moment of History. The facts of human experience become suddenly transfigured in the light of a divine principle, namely the self-consciousness of reason, that God-given spirit

which recognizes the purpose of History to be the increasing self-knowledge of Man.

"History is a divine drama, designed to educate man into self-knowledge and the knowledge of God," (Henry James, Sr., on "Carlyle," in *Atlantic Monthly*, May, 1881.) Tennyson recognized the divine element in human history in that prophetic verse:

"And I doubt not through the ages one increasing purpose
runs,
And the thoughts of men are widened with the process of the
suns."

It is by this "increasing purpose" that God reveals himself in human history. By the widened thought, Humanity is led forward, as it were by a pillar of fire, unto a higher life, and unto a conscious unity with Divine Reason, the Unseen One, who dwells in a temple not made with hands.

SOME FACTS CONCERNING THE SETTLEMENT AND EARLY HISTORY OF MISSISSIPPI.

By R. W. JONES, M. A., LL.D.

The "Miscellaneous Papers" as collected by Col. J. F. H. Claiborne constitute a rich mine for the future historian. They also indicate what can be done by others by well-directed inquiry, in the way of gathering information from "old settlers" and by going to other sources that may be accessible. The importance of this work can be scarcely overstated, and the sooner it is begun the better. A volume could be written composed of adventures and daring exploits that would be as thrilling as highly wrought fiction and make us proud of our ancestors. As an illustration of the large number of well known characters introduced, within a limited space, and of most interesting and instructive incidents I shall quote from a letter of

DR. A. R. KILPATRICK

to Col. Claiborne, written at Navasota, Grimes county, Texas, May 2, 1877:

* * "You ask for my contributions to De Bow's Review, but I am entirely unable to furnish them. When I left Concordia, La., in September, 1863, I moved none of my books, and the scoundrel in whose hands I left the place proved to be a traitor joined the Yankees, and when Natchez was occupied he went partners with some of the Federal officers, who brought over several wagons, gutted my house and sold the furniture and other property in Natchez. Out of a library of 2,000 volumes I have none left. Among my books were (12) twelve volumes of De Bow's Review bound." In these twelve volumes Dr. K. had written a great deal that was interesting and instructing to those who inquire into the settlement and colonial history of Mississippi. They contain accounts of many of the best known families who lived

at and near Natchez and Woodville and in the counties wherein these towns are situated; also similar writings concerning Concordia, La.

He says; "Before I wrote those accounts of Concordia Parish, I wrote some Sketches of the early Baptist in Mississippi and Louisiana which were printed in a Baptist newspaper of New Orleans under the management of a Minister named Duncan: I think he was Rev. W. Duncan, D. D. Get copies of those papers and make use of the historical facts, because your work will be incomplete if you leave out the churches. These papers were published about 1849-51.

"My Grandfather (Maternal), Robert Turner, was an early settler in Miss., and a pioneer of the Baptist Church, though not a minister. He moved a colony of nearly (100) one hundred, white and black from Beaufort District, S. C., starting in 1804. He went up near Nickajack on the Tennessee River, built boats, put on his horses, cows, hogs, furniture and floated down to Natchez, reaching there early in 1805, he found there no settlement to suit, went down to Fort Adams, landed, and settled four miles S. W., of where Woodville now stands. There they built old Bethel Church with whipsawed lumber and wrought iron nails, each one furnishing his part of materials, or work. The Chaplain or preacher of the colony was Rev. Moses Hadley. At that time, 1805, there were only a few houses, temporary shanties, where Woodville is. Ole Uncle Bob Lecky, who kept hotel so many years in Alexandria, La., and old John S. Lewis of Woodville, were the first to put up houses. My Grandfather, R. Turner was a Surveyor and was employed to measure and lay off the streets, squares, etc., of the town in 1808. He was also summoned and served in the arrest of Aaron Burr above Natchez about 1807; he said it was so cold in February that in handling oars of the skiff the blood poured from the tips of his fingers. He represented Aaron Burr as remarkably polite, genteel, urbane, good looking, though small, and as having eyes whose glance was most penetrating and fascinating.

"There was another party of pioneers from Georgia, preceding Grandfathers; in this party were the Ogdens and Nolands."

"Captain John Ogden, near Woodville, (1796-1837) served as Captain at the battle of New Orleans, 1814. Robert Tanner and several of his

colonists moved to Rapides Parish, La. There the old gentleman died September, 1839, of yellow fever, aged 71 years. Wilkinson county furnished one Governor (H. Johnson) to Louisiana and (4) four, I think, to Mississippi.

"The old original editor of the Woodville Republican, W. Chisholm, had all the volumes of that paper bound for over twenty years—from about 1820 to 1845. In it will be found much of Poindexter's history; also much of Moses Waddell, of Abbeville, S. C., brother-in-law of John C. Calhoun."

Rev. Wm. Winans, D. D., lived and died at Mount Pleasant, about sixteen miles east southeast of Woodville. Major Butler, of Kentucky, lived there; also General Van Dorn's father. Major Butler served in General Wilkinson's command. The general was very strict in regard, not only to his own dress, but also the dress, etc., of the officers and men under him. It was the fashion then to wear the hair long and plait it into a queue, or pig-tail behind. General Wilkinson had the misfortune to lose his pig-tail and issued an order for all to cut off their pig-tails.

Major Butler refused; Wilkinson threatened court martial; Butler resigned and retired to the farm of his sister, Mrs. Cook. In a few months he died; before dying he left special injunctions with Mr. and Mrs. Cook to have an auger-hole bored in his coffin, to have his hair neatly dressed and the pig-tail tied with a blue ribbon and run through that auger-hole, so that Wilkinson and his officers might see that he was pluck to the last and distained his authority.

Dr. Franklin L. Riley, in a lecture, gives another version of this incident, which is very amusing. Dr. Kilpatrick narrates many incidents concerning Governor Poindexter, Mr. Percy, Audubon, Jeff Davis and others.

The Audubon mentioned by him was the distinguished John James Audubon, the Naturalist. Born 1781, in Louisiana, died 1851, on the Hudson; Author of *Birds of America*, *Quadrupeds of America*, etc. Audubon was at the house of Mr. Percy, spent several months with him; he furnished Audubon with many specimens of birds for his sketches. One day Percy says he brought home a "magnificent gobbler" which weighed about 28 pounds and Audubon *would have it*. He pinned it up beside the wall so as

get a good view of it and spent several days lazily sketching it. Percy said: "The —— fellow kept it pinned up there till it rotted and stunk. I hated to lose so much good eating."

It is said that while Aububon was at or near Woodville, his money gave out; he refused to accept gifts; but taught a dancing school, in order to get funds sufficient to enable him to proceed with his researches in Natural History. The people patronized him generously.

"Jeff. Davis spent part of his boyhood in Wilkinson county, Miss. There was a boy on a place adjoining where Jeff. Davis lived named Bob Irion, son of a Baptist preacher. The two boys went hunting one day, each alone, and after some time they met behind a field. Jeff. Davis was out of shot and Bob was out of powder, but had shot. Davis wanted some shot and asked for some, but Bob was unaccommodating and saucy—jeered at Davis, and finally told him he had a mind to shoot him any how, and made some threatening demonstration which aroused Davis. Davis jerked out a small pocket knife dropped it down his gun on the load of powder and raised his gun and said: "Now, sir, I'm ready for you; I dare you to shoot.' Bob told me this himself during the Mexican campaign, as illustrating Davis' bravery and fertility of resources in emergencies. Of course the boys stopped their foolishness and exchanged ammunition." * *

"I got on the Sultana at Fort Adams when S. S. Prentiss was aboard on his bridal trip—married that morning at Natchez, and the whole bridal troupe went down to New Orleans. It was my first sight and acquaintance with Prentiss. I was charmed with his manners and appearance. He had the most handsome head, and it sat better on his neck and shoulders than any person I know. That was in 1843, when his fame was world wide; yet, sir, he was as bashful, timid and quiet as a boy of 16 in the presence of those ladies."

"At table he had nothing to say, but ate his meals quietly, almost stealthily. But as soon as he came down in the social hall, he was lively and chatted enough."

I could give other extracts of value and interest from this same letter, but I will not worry you. I hope it will not be long before this letter and other

important historical manuscripts will be printed.



PRE-HISTORIC JASPER ORNAMENTS IN MISSISSIPPI

R. B. FULTON, M. A., LL. D.

In the annual Report of the Smithsonian Institute for 1877, Dr. Chas. Rau, under the title of "The Stock-in-Trade of an Aboriginal Lapidary," emphasizes his conjecture "that among the aborigines certain individuals who were by inclination or practice particularly qualified for a distinct kind of manual labor, devoted themselves principally or entirely to that labor." He referred to several instances where, in certain localities, finds of a large number of similarly wrought specimens of work in stone seemed to indicate that each set of specimens came from the hands of a special lapidary.

One of the most remarkable of these deposits was found in Lawrence County, Mississippi, in 1875, and was carefully described by Dr. Rau. It consisted of 469 imperfectly finished objects made by chipping, cutting and grinding out of reddish or orange-colored or brown jasper pebbles, and was found accidentally about two and one-half feet below the surface of the ground in the northern part of Lawrence County,^[67] The objects were evidently intended for ornaments, and when finished all would have been polished and probably perforated. The majority were cylindrical in shape, and varied from one-fourth to one inch in diameter and from one-fourth to three inches in length. Others were roughly fashioned into ornamental shapes. Several showed an attempt at perforation, and one, not received at the National Museum, was said to be completely perforated.

When the hardness of the material used—jasper—is considered, the patience and skill needed to give their form and polish to these objects command admiration. From the fact that only one specimen was perforated completely, one might readily suppose that the workman found the difficulties of this part of his undertaking too great, and buried his unfinished work in despair.

Some time ago there came into my hands a set of similar articles found in the county of Lincoln, Mississippi, about twenty-five miles west of the spot where the above-mentioned find was made.

These last found objects were exhibited at the Cleveland meeting of the American Association for the Advancement of Science, in the hope of learning whether similar specimens had been found, as they appeared to me at that time to be entirely unique.

Following out suggestions made at that meeting by several gentlemen, and afterward by two of the best informed Southern archaeologists, I found that the above-mentioned region in Mississippi has yielded a number of carved, polished and perforated objects of this hard red or brown quartzite (or jasper), and nearly all such specimens of this material which I have been able to learn about came from this region.

The collection of specimens of this style of workmanship described by Dr. Rau probably contains the majority of pieces extant. A few specimens of polished jasper ornaments from other States than Mississippi are shown in the National Museum. There are two or three specimens from Indiana, one from California, and one from Louisiana (Claiborne Parish), which seem to be similarly made and from the same material.

The late Dr. Joseph Jones of New Orleans had in his collection some jasper ornaments, mostly from Mississippi, including a beautiful ceremonial ax of reddish translucent jasper.

Besides those mentioned I have not been able to learn of other similar objects. Probably there are a few scattered ones in other hands.

The collection of these objects in my possession includes thirty pieces. They were found on a farm four miles west of Wesson, in Lincoln County. And were plowed up on the summit of a hill where no earthworks were noticed. A few other relics were found at the same time and were not preserved. With them were two other beads, one of a gray stone and the other of bone very truly shaped, as if in a lathe.

Among the jasper ornaments (all of which are perforated longitudinally with holes from one-tenth to one-eighth of an inch in diameter) are three cylinders between two and a half and three inches long and about one-fourth of an inch in diameter; ten cylinders ranging from a quarter to an

inch and a quarter in length and less than one-quarter in diameter; five nearly spherical beads; one accurately shaped short cylinder three-quarters of an inch long and five-eighths in diameter, with a well-drilled perforation three-eighths of an inch in diameter; and ten carved ornaments of various shapes. One of these, an inch long, is a strikingly sculptured deer. Four are evidently intended for birds, and four others resemble each other and in form are indistinctly bird-like. A separate ring of the same material is firmly fixed on one of the long beads.

All of the specimens have evidently seen service as personal ornaments. They have a fine polish externally, and the interior of the borings is worn smooth as by a string. An artistic color-perception is shown in the beautiful variety of tints brought out in various pieces of jasper used.

As to all these ornaments in red jasper mentioned in this paper, comparison of the specimens forcibly suggests that they may be the work of one skilled artist. In the western pebble belt of Mississippi, which extends along the border of the Mississippi and Yazoo river bottoms southward from near Memphis to Natchez, and thence eastward through the counties in which these relics have been found, quartzite of almost every variety occurs, and chipped implements of almost every variety and color are common. The maker of these ornaments has passed by all other tints save red and brown. In the cylindrical and other carved forms that have been found there is a striking similarity both in design and workmanship.

One will readily believe the perforation of these ornaments with small and accurately made drillings to have been the most difficult part of their manufacture. And yet in all the specimens seen the perforations have been in the *longest* direction through the ornament. The total length of the borings in the set of thirty beads I have is twenty-eight inches. A lapidary not remarkably expert in the art of drilling these holes would probably have simplified his work by shorter borings, arranging the ornaments as pendants.

Again, the rarity of any objects of carved or polished or perforated quartzite suggests a very limited manufacture even in the region under consideration.

As to the means used in making these perforations, drills of stone are excluded from consideration on account of the smallness and length of the borings.

There is one specimen in the collection of Dr. Joseph Jones of New Orleans, in which a boring has been begun, evidently with a hollow tube as a drill, probably a joint of a reed fed with sand, as there is a core in the centre of the boring; but hollow drills as small as one-twelfth of an inch in diameter could scarcely have been used. Some of the specimens described by Dr. Rau show the beginning of the drilling process, apparently with a solid drill, fed with sand.

We are forced to the conclusion that the drilling implement used must have been a needle of copper, or more probably of the hard outer wood of the Southern cane tipped with quartz, or fed with sand. The borings are about as true in direction and form as the best modern appliances could make them.

It is worthy of note that these highly wrought jasper ornaments have been found in that portion of Mississippi once occupied by the Natchez, that these aboriginal people were more or less familiar with Mexican or Aztec art and customs, and that carved and polished workmanship in hard stones was not uncommon among the aborigines of Mexico and Central America.

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SUGGESTIONS TO LOCAL HISTORIANS.

BY FRANKLIN L. RILEY, PH. D.

Local research must precede the writing of general history. It discovers and renders available the materials from which history is made. For this reason the local historian largely determines the character and extent of all history. The facts with which he deals may be considered as mere historical digits, yet in the aggregate they represent the entire life of a people. In fact their true value is not fully revealed until they are tested by their relation to State history and to still larger movements. The apparent insignificance of the local annal disappears when it is recognized as one of a thousand threads out of which is woven the great and beautiful fabric of human history. Hence, as has been truly said, "local history is not isolated; it is a part of State history——indeed of national and world history."

One of the most pressing needs in Mississippi is a more efficient organization for local historical work. Societies should be organized in the various historical and intellectual centers of the State. Such an organization has been effected among the students of the University of Mississippi. The formation of similar societies throughout the State would awaken an interest in Mississippi history. This should not be limited, however, to our institutions of learning. It is also desirable to enlist in the great work of perpetuating our history the many noble men and women who have helped to make it.

Another great need is a system for the proper direction of the various lines of research that should be followed out in the State. The best results can accrue from such organizations only by a system for the unification of efforts and the preservation of results. Without such a system the results achieved by the historical renaissance upon which we are entering will be largely lost. This necessity is shown by our past experience in work of this kind. In 1876 many counties of the State, acting in accordance with a suggestion of the President of the United States, held centennial celebrations, at which were delivered many addresses of historical value. With the exception of an incomplete collection of these addresses which

were gathered into the archives of the State Historical Society upon its organization, several years later, these contributions to our history have either been lost entirely, or are not now available to investigators. By having a common place of deposit for these results of historical investigation our workers will be able to learn readily what has been done along various lines of research and will often be saved a duplication of effort.

Plan of Organization.—The charter of the Mississippi Historical Society gives it authority to establish branches in the various counties of the State. In order to put such a scheme into practical execution, the Executive Committee of the Society has adopted the following resolution, looking toward a unification of all the historical work of the State:

1. That all of the patriotic and historical organizations of the State, including local historical societies; the Daughters of the Revolution; the department of Mississippi United Confederate Veterans, and the Sons and Daughters of the Confederacy may, by a resolution duly passed and filed with the Secretary of the State Historical Society, become affiliated with said society and entitled to all the benefits accruing therefrom.
2. That any such auxiliary society may, by the first of December annually, make a report of its work to the Secretary of the State Historical Society, which, or portions, or a synopsis thereof, may be included in the publications of the State Society, and upon application of an auxiliary society the State Society may become custodian of the records of such auxiliary society.
3. That a copy of the publication of the State Historical Society be sent, free of charge, to such auxiliary societies as make annual reports as provided above.

PURPOSE OF AFFILIATION.

1. *Encouragement of Research.*—It is the purpose of the State Society to encourage investigation by giving proper recognition to all worthy contributions that may be made to our history. This will be done both by the public presentation of papers from local societies at the annual meetings and by their publication and distribution by the State Society.

2. *Unification of Work and Preservation of Results.*—This is the day of co-operation in historical work. A great and noble task lies before us. We cannot afford to duplicate work or to lose any worthy contributions that may be made to our history. Let us not repeat the experience of 1876. Again some of our most important subjects can be worked only by local aid in various parts of the state. This aid can be furnished by the members of organizations in the locality from which information is desired.

SUGGESTIONS.

Character of Work Needed.—The historian should above all things keep himself free from prejudice. It will be impossible to stop investigation and the historian must ever keep in mind the fact that sooner or later his work will be tested by others and his errors brought to light. The value and permanence of all historical work, therefore, is quite in proportion to the amount of truth it contains. "Particularly must he," says one, "guard against careless or incorrect statements about the dead who cannot defend themselves." Every assertion should be susceptible of proof and exact references should be made in foot-notes to the authority upon which a statement is based. If this be neglected, says the writer quoted above, the work stands in danger either of neglect by future historians, or of being discredited as a mass of unsubstantial statements.

Sources of Information.—The most fruitful and accessible sources of information on local history are the following: State histories; public records (municipal, county, church, school, etc.); newspaper files; books and pamphlets pertaining to the locality under consideration; manuscript letters, journals, etc., of early settlers; and interviews with the oldest inhabitants.

Scope of Work Needed.—In Mississippi the following topics would doubtless yield rich returns to the local historian. The list might be enlarged or changed to meet local conditions.

Antiquities.—The name and location of Indian tribes and the events, dates and incidents in their history together with their present condition in some counties in the State would doubtless prove fruitful to the investigator. Closely allied to this is the subject of archaeology. Although we have no large public collection of pre-historic implements in Mississippi there are

several excellent private collections in different parts of the State. These should be cited for the use of investigators.

Early Settlements.—This opens a fertile field that has been too much neglected in Mississippi. The local historian should gather up the annals and letters of the first settlers. He should as far as possible ascertain the former homes of settlers and the facts that led to their removal as well as those which determined the location of settlements. Closely allied to this is the development of early thoroughfares. The investigator might also give the early experience as well as the domestic and social customs of the pioneers.

Biography.—The lives of men that have contributed to the greatness of our State. We do not know enough about our statesmen, scientists, poets, teachers, philanthropists, authors, etc.

Groups of Foreign Settlers.—Although this field is limited in Mississippi, we have not done this work. The Irish settlement in Jasper county and perhaps a few others in the State might be worked with much interest and profit.

Military History.—The old militia system and the part taken by the county in the wars in which the United States has engaged need to be investigated now, since those who took part in these events are fast disappearing.

Political History.—This subject might embrace county boundaries, their establishment and location, the origin and development of political parties within the county; the establishment of municipalities, etc.

Religious and Social History.—The sources by way of church records are abundant. The growth of churches, philanthropic movements and reforms may be included under this subject.

Educational History.—This would embrace not only the public schools of to-day, but private schools of ante bellum times.

Industrial and Commercial Development.—The local historian might show the effects of topography, soil and natural resources upon the occupations and economic conditions of the county. Industrial and commercial methods should be treated and statistics given. In this connection the influences of slavery should be noted.

Miscellaneous Topics of a Local Nature.—The following subjects might be studied with results more or less satisfactory, according to location: Tory

Influences, Railways, Newspapers, Architecture, Contents of Early Libraries, Reconstruction, etc.

SOME INACCURACIES IN CLAIBORNE'S HISTORY IN REGARD TO TECUMSEH.

BY H. S. HALBERT

In this article the writer desires to call attention to some inaccuracies in Colonel J. F. H. Claiborne's History of Mississippi, on page 487, in regard to Tecumseh's visit to the Choctaws. These inaccuracies have unfortunately misled the authors of our Mississippi school histories, and I wish here to present the subject in its true light and so correct these inaccuracies for the benefit of all students of Mississippi history. As a beginning, I will state that in 1877 I sent to Colonel Claiborne, then engaged in writing his history, some notes which I had written in regard to Tecumseh's visit to the Choctaws in 1811. These notes gave some account of the last council between Tecumseh and the Choctaws, which was held on Blewett's plantation, in Noxubee County. Subsequent research, several years after, showed that I was in error on some points. Still, if Colonel Claiborne had made use of my notes just as they were, the matter would not have been so bad. I regret, however, to say that Colonel Claiborne took much liberty with my narrative and added thereto some fictitious embellishments. To take a liberal view of the matter, the Colonel, no doubt, considered these embellishments as harmless and as adding somewhat to the interest of the narrative. After the manner of some historians of antiquity, the Colonel had acquired the habit of putting fine speeches into the mouths of his Indian heroes. For the benefit of the students of Mississippi history, I will here state, in all truth and good conscience, that the speech which he has put into the mouth of Pushmataha is nothing more nor less than pure and unadulterated fiction. Pushmataha never made that speech. Even the uncritical school boy might ask the questions: "Who was the reporter in the Indian camp that took down that speech?" "Who translated the speech from Choctaw into English?" The Truth is, Colonel Claiborne simply composed that speech and interpolated it into my meager narrative. The Colonel, too, seems to have been utterly oblivious or regardless of the fact, that, in all Indian inter-tribal councils, where more than one language is spoken, all the

business is transacted through the cold medium of interpreters. Under such circumstances there can be no wonderful displays of impassioned oratory. Pushmataha spoke only Choctaw, Tecumseh only Shawnee. A speech delivered by Tecumseh in his native tongue could not have been understood by the Choctaws. Hence, all the arguments and statements on both sides had to pass through the mouth of the interpreter; in this case the interpreter, Seekaboo. Such inter-tribunal councils are strictly business conferences. Many years ago it was my fortune to be present at two inter-tribal councils among the wild tribes, where several languages were spoken, and no displays of oratory were attempted—for in such a case the speaker's tribesmen alone could have understood him—but everything was conducted in practical, businesslike manner, the interpreters kept constantly busy translating the statements of the speakers.

Reverting to Colonel Claiborne and Tecumseh, I will state that elsewhere I have given all the attainable facts in regard to Tecumseh's Choctaw visit, worked out from original and authentic sources. Suffice it here to say that Tecumseh in none of his councils exerted the slightest influence over Moshulitubbee, over Hopaii Iskitini, nor over any other Choctaw, chief or warrior. The Choctaw mingoes unanimously and utterly discountenanced his designs, and at the last council threatened to put him to death if he did not leave their nation.

Again, on this same page, there is an inaccuracy in regard to the conference which Weatherford and Ochillie Hadjo had with Mingo Moshulitubbee. In this case, however, Colonel Claiborne is not blameable, as I made the mistake myself in the notes which I sent him. Subsequent inquiry showed that I was in error on this matter, so I here correct the statement by saying that Moshulitubbee was not influenced in the slightest degree by these Muscogee chiefs. This conference is an historic fact, which I received from the late Mr. G. W. Campbell, of Shuqulak, he receiving it in early life from Stonie Hadjo, one of Moshulitubees' captains. Circumstances show that this conference occurred in the summer of 1813, perhaps in July.

My object in making these corrections is, that, as I am the only person who knows about these erroneous statements in Claiborne's history, I may place the facts in their true light for the benefit of all lovers of historical accuracy.

DID JONES COUNTY SECEDE?

BY ALEXANDER L. BONDURANT, A. M.

It seems that many within and without the State would answer this query in the affirmative, and even their ordinance of secession is given by one writer on the subject as follows:

"Whereas, The State of Mississippi, for reasons which appear justifiable, has seen fit to withdraw from the Federal Union; and

"Whereas, We, the citizens of Jones County, claim the same right, thinking our grievances are sufficient by reason of an unjust law passed by the Confederate States of America forcing us to go into distant parts, etc., therefore, be it

"Resolved, That we sever the union heretofore existing between Jones County and the State of Mississippi, and proclaim our independence of the said State and of the Confederate States of America; and we solemnly call upon Almighty God to witness and bless the act."

Such being the case, it has seemed to me in order to advert to a discussion in the Nation on this subject beginning March 24, 1892, which throws considerable light on the question. In the paper of this date Samuel Willard, of Chicago, writes that he had been a soldier in the army which invaded Mississippi, and that he had never during the war heard of such an occurrence. When, therefore, he saw the statement made in the New England Magazine, for November, 1891, the author being Professor Hart, he doubted its accuracy. It may be stated just here that Professor Hart, in a subsequent issue of the Nation gives as his authority Mr. Galloway, historian of the Sixth army corps, who published in the Magazine of American History for October, 1886, an article entitled "A Confederacy Within a Confederacy;" but upon what authority Mr. Galloway based his statements does not appear. He therefore wrote to the Governor of the State of Mississippi and to the clerk of Jones County, and elicited replies from both of these gentlemen, and Governor Stone inclosed a letter from his

predecessor, Hon. Robert Lowry, who was sent to Jones County during the war in command of troops for the purpose of arresting deserters. The texts of the letters are too long to quote in full, so a few passages will have to suffice. Governor Stone writes:

"It gives me pleasure to inform you that the whole story is a fabrication, and there is scarcely any foundation for any part of it. To begin with Jones County furnished perhaps as many soldiers to the army of the Confederacy as any other county of like population. * * * Many of them declined to go into the army in the beginning, but so far as formal withdrawal or resolution to that effect is concerned, no such thing ever occurred in Jones County. Hon. Robert Lowry was sent to Jones County during the war for the purpose of arresting and returning deserters to their commands, and there was some little fighting with these bands of deserters, or rather bush-whacking of his men by the deserters; and some of the deserters were arrested and executed, but only a few. The whole story is the veriest fabrication, and I presume few persons of intelligence will believe any of it."

Ex-Governor Lowry writes: "The county furnished nearly and probably its entire quota of soldiers, many of whom did splendid service. No such effort as establishing a separate government was ever attempted. The story of withdrawal and establishing of a separate government is a pure fabrication—not a shadow of foundation for it."

Governor McLaurin, in a recent letter to me on this subject, writes: "I was a boy thirteen years old when the war commenced. I was 'raised' in Smith County, a county adjoining Jones. I was at home the first three years of the war, and, if there was any attempt by Jones County to secede and set up a separate government, I did not hear anything of it. I was in a brigade that intercepted a Federal raid that started from Baton Rouge to Mobile in November or December, 1864, and we passed through or very near Jones County, and I never heard of any attempt to set up a separate government in the county. I think it is safe for you to negative the whole story."

E. B. Sharp, Esq., chancery clerk, writes: "The report is utterly false in every particular."

The authority of these well known gentlemen is quite sufficient to dispose effectually of this canard reflecting upon the good name of a county which rendered brave and efficient service to the Confederacy.

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FOOTNOTES

[1] Ratifications were exchanged at Aranjuez, April 25, 1796, and the treaty was proclaimed August 2, of the same year.

A copy of this treaty is given in the American State Papers. Foreign Relations, vol. 1, 546 et seq; also in the Treaties and Conventions Concluded Between the United States and Other Powers Since July 4, 1776. Sen. Ex. Doc. 2d Session, 48th Congress, Vol. I, Pt. 2, 1006, et seq.

[2] See Trescot's Diplomatic History of the Administrations of Washington and Adams. Chapters I and IV.

[3] Godoy's Memoirs, Vol. I.45-'8 et seq. Quoted from Trescot, 253. It is very evident that Mr. Pinckney understood the circumstances that determined the course of the Spanish Minister. See American State Papers For. Rels. I. 535. Martin, who has studied the subject from the standpoint of Louisiana, says (History of La., 269) that this was also understood by the King's officers in New Orleans.

The United States and England had previously agreed that they would share equally in the navigation of the Mississippi and on May 4, 1796, six months after the treaty with Spain, the United States and England subscribed to the following: "No other stipulation or treaty concluded since (the date of their former treaty) by either of the contracting parties with any other Power or Nation, is understood in any manner to derogate from the right to the free communication and commerce guaranteed by the 3d article or the treaty to the subjects of His Brittanic Majesty."—Amer. State P. For. Rels. II. 15. In a letter to the Spanish Minister, Chevalier de Yrujo, dated January 20, 1798, Mr. Pickering says that the United States "have not asked, nor will they have occasion to ask Spain to be the guardian of their rights an interests on the Mississippi."—Ib. 102.

[4] Sketches of Louisiana (1812), 98-9. The author of these sketches, a major in the army of the United States, took possession of upper Louisiana in behalf of his government, under the treaty of cession, in March, 1804. His book was based upon "local and other information" furnished by "respectable men" "in most of the districts" of which he wrote, together with his own extensive excursions, during the five years in which he was stationed on various parts of the lower Mississippi.

[5] This is the language of Stoddard, which was based upon Gayoso's letter. See Sketches of La. 98-9.

[6] In 1787, the Intendant of Louisiana, acting in accordance with instructions from the Spanish court, prepared an elaborate memoir on the political situation in America. "He represented the people of the United States as extremely ambitious, as animated by the spirit of conquest and as anxious to extend their empire to the shores of the Pacific. He then suggested a line of policy, which in his opinion, it was incumbent on Spain to adopt. The dismemberment of the

western country, by means of pensions and commercial benefits, was considered by him as not difficult. The attempt was therefore strongly urged, particularly as it would, if successful, greatly augment the power of Spain in this quarter and forever arrest our progress westward. These suggestions were favorably received, and formed the groundwork of that policy which Spain afterwards pursued."—Sketches of La., 98.

[7] *Ib.* 85.

[8] See Hinsdale's *Old Northwest*, Chapter X. A bibliography of the Negotiations at Paris, 1782-'83, is given in Hinsdale's *Southern Boundary of the United States*, published in the Annual Report of the American Historical Association for 1893, p. 339, footnote.

[9] See Gould's *Fifty Years on the Mississippi*, 182 et seq.; 288 et seq.

[10] Stoddard's *Sketches*, 88-'9.

[11] *Ib.* 90.

[12] *Ib.* 99.

[13] He was at this time Governor General of Louisiana.

[14] *Amer. State Papers. For. Rel.* II.79. This opinion is corroborated by Marbois (*Hist. of La.*, 162) who made a study of the subject from the French standpoint.

[15] Martin's *History of La.*, 271-5.

[16] He was Governor of the Natchez District and was stationed at the town of Natchez.

[17] Ellicott had made the surveys locating the limits of the District of Columbia, in 1791 (*Chas. Burr Todd's Story of Washington*, 21). The year following he was appointed to draft and publish a plan of the Federal City (*Ib.* 30). He also established the Meridian of Washington, conducted several other important public surveys and served a number of years as Surveyor General of the United States. In 1813, General Armstrong appointed him Professor of Mathematics in the United States' Military Academy at West Point, which position he held for several years. He was in constant communication with the National Institute of France and contributed to the *Transactions of the American Philosophical Society*. His official dispatches while engaged as Commissioner for locating the boundary between the United States and Spain may be found in the *American State Papers, Foreign Relations, Vol. II*. A more extensive account is given in narrative form in *Ellicott's Journal*, published at Philadelphia, in 1803. All his writings with reference to Mississippi must be read with caution, since they exhibit intense partisan animus.

[18] The day after beginning his descent of the Mississippi, he and his party reached "the station of one of the Spanish gallies, the master of which treated them politely, but detained them until the next day (Journal, 31). A few hours after leaving this point, they reached New Madrid, where they were saluted upon landing "by a discharge of the artillery from the fort and otherwise treated with the greatest respect and attention." Here the commandant stated that he had "a communication to make and for some reasons, which he did not detail," requesting Ellicott "to continue there two or three days." The commissioner declined to be detained longer than one day. At the expiration of that time a letter was produced from the Governor General of the province, containing an order issued about three months previous, not to permit the Americans to descend the river till the posts were evacuated, which could not be effected until the waters should rise." In reply, Ellicott took the position that "if want of water was an objection ... it was ... done away by the commencement of the inundation," that such an order must have been intended for troops and that to detain himself and party "would be an indirect violation of the treaty" they were preparing to carry into effect. The objection was then withdrawn and they proceeded (Ib. 31-33). At Chickasaw Bluffs the Commandant received the party politely but "appeared embarrassed" (Ib. 34) and affected almost total ignorance of the treaty. There were no appearances of preparations to evacuate (Ib. 35). Again resuming their voyage, they were detained a few days later, for about an hour, by a Spanish officer commanding two galleys (Ib. 36). At Walnut Hills (Vicksburg) they were brought to by an "unnecessary" discharge of a piece of artillery, but were treated "very civilly when on shore." Here also the commandant "appeared to be almost wholly unacquainted" with the treaty and was not satisfied until Ellicott produced "an authenticated copy" of that instrument in Spanish (Ib. 37). This incident appeared very extraordinary to the Commissioner in view of the fact that this station was "in the vicinity" of Natchez, where Governor Gayoso resided (Ib. 38).

All of these occurrences were more extraordinary still, when viewed in the light of the further facts observed by Professor Hinsdale:—Although Ellicott "bore a commission from the Government of the United States, was accompanied by an escort of American troops and was charged with the performance of a duty created by a solemn international agreement, he was halted and questioned as though he were a suspect in a strange country. Moreover, the one bank of the river, throughout the whole distance, Spain had acknowledged to belong exclusively to the United States, to say nothing of her having guaranteed its navigation by American citizens from its source to the sea" (Annual Rept. Amer. Hist. Association for 1893, pp. 351-2).

[19] Ellicott's Journal, 39-40. This escort consisted of only twenty-five men (Amer. State papers, For. Rel. II. 20).

[20] Ellicott's Journal, 44.

[21] Ib.

[22] Ib. 50.

[23] Ellicott's Journal, 52.

[24] Ib. 52.

[25] An effort had been previously made to induce Ellicott to visit the Baron at New Orleans. July 14, the President directed the Commissioner to remain at Natchez until the Spaniards were ready for operations. Amer. State Papers, For. Rel. II, 102.

[26] Ellicott's Journal, 47-48.

[27] Ib. 84.

[28] These pretexts often overlap, two or more being given at the same time. They are arranged in the order of their first appearance.

[29] Report to the President of the United States, dated June 10, 1797, in Amer. State Papers, For. Rel., II, 72.

[30] Ib. 92.

[31] Ib. 20. Letter from the Secretary of War to Gen. Wilkinson, dated June 9, 1797 in Ib. 92.

[32] This pretext was given in connection with the preceding one in the proclamation of March 28 and 29.

[33] Ib. 25.

[34] Ib. 92.

[35] Amer. State Papers, For. Rel., II, 66. Lieutenant Pope wrote to the Secretary of War, from Natchez, May 9, 1797, "there have been several attempts to draw on the Indians upon my troops" (Ib. 73); General Wilkinson also wrote him from Fort Washington, June 4, 1797, "letters from all quarters announce the discontent and menacing aspect of the Savages; ... they ... are making no preparations for a crop, which is certain indication of their intention to change ground" (Ib.); Lieutenant Colonel Hamtramck wrote from Detroit, May 21, 1797, "I am pretty sure that both the French and Spaniards have emissaries among the Indians" (Ib.). The Secretary of State received a letter from Winthrop Sargent, at Cincinnati, bearing date of June 3, 1797, in which he says, "it ... appears from various channels, that they (the Spaniards) are inviting a great number of Indians of the (Northwest) territory to cross the Mississippi.... A large party of the Delawares passed down White River about the 6th of May, on their way to the Spanish side, bearing the national flag sent from St. Louis" (Ib. 88).

[36] Ib. 73.

[37] Ib. 78. This reason was expressed by Governor Gayoso in a letter to Commissioner Ellicott, dated March 31, 1797 (Ellicott's Journal, 71).

[38] This declaration was made March 23, 1797. Gayoso suggested, at the same time, that this post would be held only until the arrival of American troops to take possession (Amer. State Papers, For. Rel. II, 91).

[39] Ellicott's Journal, 71.

[40] Amer. State Papers, For. Rel. II, 20.

[41] Ib. 97. He also cited several precedents established by different powers in fulfilling treaties of a similar nature. See Ib. 92-'3.

[42] March 2, the Spanish Minister wrote Mr. Pickering that he had become confirmed in a suspicion expressed to him three days previous, that the British in

Canada were preparing to cross over from the lakes to the Mississippi, "by Fox River, Onisconsin or by the Illinois or other parts of the territory of the United States" in order to attack Upper Louisiana. He therefore requested that measures be promptly taken to prevent a violation of American neutrality (Amer. State Papers, For. Rel., II, 68).

[43] Upper Louisiana, which was then in the possession of Spain.

[44] Ib. 78.

[45] Ib. 79.

[46] Ib. 69.

[47] April 21, 1797 (Ib. 68).

[48] Ib. 71. He also suggested that this suspicion was based upon a former scheme in which Clarke was concerned, for subduing the Floridas in connection with France.

[49] Ib. 69. He further declared that he had never heard of Clarke. (Ib. 93).

[50] Ib. 71.

[51] July 3, 1797, the President submitted to Congress a letter from William Blount to James Carey, which revealed that the former was implicated in a scheme of conquest, that he hoped to conduct in behalf of the British against the Spanish possessions. A copy of this letter may be found in Ib. 76-'7. Blount was thereupon expelled from the Senate by a vote, not of two-thirds only, as required by the constitution, but unanimously.

[52] Ib. 89.

[53] Ib. 94.

[54] Ib. 93.

[55] The Secretary evidently considered this plan the same as the one that had been mentioned by the British Minister in his communication referred to above, since Lord Greenville had written that the two objections the Minister had given to that plan,—violation of the neutrality of the United States and employment of the Indians—would have been "sufficient to induce the British Government to reject it" (Ib. 98).

[56] Ib. 90.

[57] Ib. 102.

[58] Ellicott and Pope.

[59] Ellicott's Journal, 101-'3.

[60] See Supra.

[61] Amer. State Papers, For. Rel., II., 79, 102.

[62] Two feints at evacuation were made at Natchez and at least one at the Walnut Hills (See Ib. 91).

[63] See Supra.

[64] Amer. State Papers, For. Rel. II., 25.

[65] Ellicott's Journal, 79.

[66] "Lieutenant Pope's descending the river was, certainly a fortunate circumstance for the United States, though in doing it, he did not strictly comply with his orders from General Wayne, by whom he was instructed to remain at Fort Massac till he obtained some information respecting the evacuation of the posts, and if a judgment was to be formed from the provision made for the detachment, it could not be supposed that it was really intended to descend the river. It was in want of artillery, tents, money, medicines, and a physician. In consequence of this omission, or bad management, I had to furnish the men such articles as they were in need of, out of the stores appropriated for carrying the treaty into effect. And after all that I was able to do, we had (to our great mortification) to borrow some tents from the Governor" (Ellicott's Journal, 80).

[67] They were plowed up by Mr. W. T. Hutchins in a field about three-quarters of a mile east of Hebron and were sent to the Smithsonian by Mr. T. J. R. Keenan. In the field where these objects were found, the outlines of a pre-historic fort could be easily traced until a few years ago.

[68] Since the above paper was written I have obtained one jasper bead, found fifteen miles north of Hot Springs, Ark. It is cylindrical in form, one inch long, one-fourth of an inch in external diameter, and has a longitudinal perforation one-tenth of an inch in diameter. The material resembles that of the set found in Mississippi. I have also seen several perforated jasper ornaments in the possession of Prof. J. G. Deupree, of the University of Mississippi, which were found in Copiah county, Mississippi, and I have been informed that several similar objects are in the possession of persons in Copiah County.

It will be noted that the quartzite, or jasper, of which these ornaments are made, is a very different material from the comparatively soft and easily-worked red sandstone—"Catlinite"—extensively used by the Indians of the Northwest in the manufacture of pipes and ornaments.

Transcriber's Notes

Obvious punctuation errors repaired.

Transposed lines corrected on pp. 16.

Hyphen added "battle-flags" (p. 82), "to-day" (p. 14).

P. 3: "inforamtion" changed to "information" (lack of information).

P. 9: "friendly" changed to "friendly" (friendly sympathy).

P. 16: "comonplace" changed to "commonplace" (commonplace that literature).

P. 21: "geophraphical" changed to "geographical" (geographical names).

P. 22: "Misissippi" changed to "Mississippi" (Mississippi literature).

P. 27: "enactemnt" changed to "enactment" (explanatory enactment).

P. 29: "confererd" changed to "conferred" (vote was conferred).

P. 29: "referenece" changed "reference" (without reference).

P. 31: "atuhorized" changed to "authorized" (authorized a free white male).

P. 33: "Conuty" changed to "County" (Warren County).

P. 33: "assesed" changed to "assessed" (had been assessed).

P. 36: "become" changed to "became" (became operative).

P. 47: "conceruing" change to "concerning" (concerning the same).

P. 53: "interntional" changed to "international" (international complications).

P. 58: "NEGOTIATIOHS" changed to "NEGOTIATIONS" (RESULT OF NEGOTIATIONS).

P. 62fn: "the" changed to "he" (he had never heard of Clarke).

P. 63: "hopel" changed to "hoped" (he hoped to conduct).

P. 63: "refererd" changed to "referred" (referred to above).

P. 65: "Comimssioner" changed to "Commissioner" (the Commissioner himself).

P. 65: "evactuation" changed to "evacuation" (upon their evacuation).

Pp. 68-69: "repitition" changed to "repetition" (slavish repetition).

P. 78: "maner" changed to "manner" (some noteworthy manner).

P. 79: "libary" changed to "library" (a library for a card catalogue).

P. 81: "infleunce" changed to "influence" (spiritual influence).

P. 82: "individaul" changed to "individual" (individual human mind).

P. 83: "self-consicousness" changed to "self-consciousness" (self-consciousness of reason).

P. 86: "mangement" changed to "management" (under the management).

P. 91: "Mississppi" changed to "Mississippi" (Lawrence County, Mississippi).

P. 97: "rennaissance" changed to "renaissance" (historical renaissance).

Index: "Capides Parish" changed to "Rapides Parish", "Clark, General" changed to "Clarke, General".

This text was produced from a reprint that contained typographical errors not in the original edition. The following errors that appeared correctly in the original edition have been corrected: unaccomodating (p. 88), Mississppi (p. 91), competely (p. 92), Jospeh (p. 92), seperate (p. 93), mauufacture (p. 94), appliances (p. 94), historiocl (p. 96), cenennial (p. 96), Historieal (p. 97), fetrile (p. 99), therto (p. 101), discountenaced (p. 102), cheifs (p. 102), included (p. 105), Low (1st ad page). so-colled (1st ad page), Exporation (2nd ad page).

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